

Contentious Chamber

Decision on the merits 169/2023 of December 19, 2023

File number: DOS-2021-01986

Subject: Complaint for failure to appropriately respond to a request for the deletion of personal data from the baptism register of the Roman Catholic Church

The Contentious Chamber of the Data Protection Authority (hereinafter: the DPA), composed of MR. HIELKE HIJMANS, president, and Messrs. YVES POULLET and JELLE STASSIJNS, members; Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "GDPR");

Having regard to the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Having regard to the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Having regard to the documents in the file;

Has made the following decision regarding:

the complainant:

X, hereinafter "the complainant";

the defendant:

Diocese of Ghent, having its registered office at Bisdomplein 1, 9000 Ghent, and whose company number is 0409.677.223, hereinafter "the defendant".

Decision on the merits 169/2023 — 2/60

I.

Facts and procedure

1.

The subject of the complaint concerns the failure to delete the complainant from the baptism register by the defendant following the objections raised by the complainant to the initial registration in the aforementioned registers of the defendant when the complainant was still a minor.

2.

On March 22, 2021, the complainant expressly requests, both by registered mail and by email to the address bisdom.gent@kerknet.be, that the defendant delete any reference to him from any physical or digital register or archive. The complainant explicitly refers to the GDPR in this regard and mentions his full name, date and place of birth, as well as the date of his baptism in the Roman Catholic Church. Furthermore, the complainant concludes his request by explicitly asking the defendant to retain, after the deletion "in the sense of the complete destruction of existing data," the data related to this deletion.

3.

On April 13, 2021, the complainant receives a letter dated April 7, 2021, from the then Chancellor on behalf of the defendant, informing the complainant that his exit from the Roman Catholic Church was recorded on March 24, 2021, on the list of persons who have left the Church of the parish of Ghent. The letter also mentions that the complainant is free to personally verify this annotation in the baptism register.

4.

On April 14, 2021, the complainant responds by letter and by email that he cannot be satisfied with the defendant's response. First, the complainant contests that there was an entry into the Church on his part, given that he was registered in the baptism register by third parties (in this case, his parents) and without having a say in the matter. The complainant writes that there can be no question of an exit from the Church, as he believes there was never an entry into the Church. The complainant then insists again on having all data referring to him deleted from any physical or digital register or archive, including information related to his exit from the Roman Catholic Church, as he himself never gave his

consent to the initial registration in the aforementioned registers.

5.

On April 14, 2021, the complainant files a complaint with the Data Protection Authority against the defendant.

6.

On April 22, 2021, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

Decision on the merits 169/2023 — 3/60

7. On July 28, 2021, the Contentious Chamber decides, based on Article 95, § 1, 1° and Article 98 of the LCA, that the file can be examined on the merits and informs the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The defendant is specifically informed that it has potentially violated Articles 12.2, 12.4, 17.1, and 21.1 of the GDPR as it did not respond to the request to remove the complainant from all of the defendant's registers following the objections made by the complainant regarding the initial registration, as well as the formal request for the removal of any reference to the complainant from any register or any physical or digital archive of the defendant. Furthermore, the defendant is requested to provide further explanations to the Contentious Chamber regarding the legal basis and the purpose(s) of the processing of the complainant's personal data, including the specific categories of personal data that may reveal religious or philosophical beliefs. Finally, the Contentious Chamber invites the defendant to explain why it limited itself, following the complainant's request to delete all data concerning him, to merely noting the exit from the Roman Catholic Church in the baptismal register in which the complainant was registered, and to mentioning this exit on the list of individuals who have left the Church of the parish of Ghent. The deadline for receiving the defendant's response conclusions was set for September 24, 2021, the deadline for the complainant's reply conclusions for October 15, 2021, and the deadline for the defendant's reply conclusions for November 5, 2021.

8. On September 14, 2021, the Contentious Chamber receives the defendant's response conclusions, in which the defendant primarily regrets that the complainant did not address his complaint directly to it, in order to receive a response to his questions in accordance with Article 12.4 of the GDPR. The defendant then refers to a detailed note regarding how the Roman Catholic Church processes data in parish registers. According to the defendant, this note was already sent to the DPA in December 2018 by the Secretary General of the Conference of Bishops, who is also the data protection delegate of the Roman Catholic Church of Belgium. The defendant indicates that this letter has remained unanswered to this day.

9. The defendant's arguments are outlined below.

Decision on the merits 169/2023 — 4/60

I.1. Defendant's Defense

10. The defendant attaches two additional annexes to its conclusions. It includes a standard response that it sends when a request is made by a data subject in accordance with Article 17 of the GDPR. It also attaches a note titled "Centrale vraag: is het recht om vergeten te worden (art. 17 AVG) ook van toepassing op de parochieregisters van de Rooms-Katholieke Kerk?" (Central question: does the right to be forgotten (Article 17 of the GDPR) also apply to the parish registers of the Roman Catholic Church?) which it had already sent in 2018 to the president of the Data Protection Authority at that time (hereinafter: DPA). These three documents together constitute the defendant's initial conclusions.

I.1.1. Defendant's Conclusions

11. Application of the GDPR. Regarding the complainant's grievances, the defendant specifies above all that the application of the GDPR to the Roman Catholic Church is not in question, before explaining that the defendant fully complies with privacy protection regulations for all digital or paper files,

websites, and newsletters, with the exception of parish registers. The Contentious Chamber assumes that by the terms "with the exception of parish registers," the defendant means that certain exceptions under the GDPR apply, which leads the defendant to believe that the right to erasure does not apply, and not that the GDPR itself does not apply to the registers as such. This is also evident from the clarifications provided by the defendant during the hearing on November 27, 2023.

12. The defendant particularly asserts that it immediately responds to requests from data subjects when they indicate that they wish to leave the Roman Catholic Church. This is done by making an annotation in the baptismal register of the parish church where the data subject was baptized. In this regard, the defendant reminds that this register is neither public nor accessible to third parties, and it is not shared with other entities. The exit is not published anywhere, and once it is completed, any written correspondence exchanged with the data subjects is destroyed.

Decision on the Merits 169/2023 — 5/60

13. No absolute right to erasure. Secondly, the defendant argues that the request for erasure under Article 17 of the GDPR refers in this case to the rights of the religious community and is therefore not an absolute right. In particular, the freedom of religion of the individuals concerned, as established in the Belgian Constitution and in the European Convention on Human Rights (ECHR), includes a constitutional freedom of worship as well as an absolute freedom of internal organization enjoyed by the religious community—in this case, the Roman Catholic Church in Belgium. The defendant indicates that this freedom is also recognized by Article 17 of the Treaty on the Functioning of the European Union (TFEU), to which the implementation of the GDPR must also be aligned.

14. Next, the defendant relies on the following arguments to justify the absence of complete erasure of the complainant's personal data:

- The recording of the sacrament of baptism and the retention of this record to prevent any identity fraud are, according to the defendant, both necessary for the religious community, given that according to the constant doctrine of the Roman Catholic Church, baptism cannot be repeated.
- According to the defendant, the baptism register serves as a central register of the Roman Catholic Church and as such, it cannot be compared to any other register containing personal data, given that "several initiation sacraments that confer rights to the baptized" are inextricably linked to the baptism register.
- The processing of the personal data of the individuals concerned during their baptism is based on Article 6.1.f) of the GDPR, namely the legitimate interest of the defendant, and not on the consent of the individual concerned (6.1.a) of the GDPR) nor on the execution of a contract between the individual concerned and the data controller (6.1.b) of the GDPR), so that the withdrawal of the "consent" of the individual concerned cannot have consequences for the contested data processing.

1 Article 17 of the Treaty on the Functioning of the European Union — "1. The Union respects and does not prejudice the status enjoyed under national law by churches and religious associations or communities in the Member States. 2. The Union also respects the status enjoyed under national law by philosophical and non-confessional organizations. 3. Recognizing their identity and their specific contribution, the Union maintains an open, transparent, and regular dialogue with these churches and organizations."

Decision on the Merits 169/2023 — 6/60

- Contrary to what the complainant claims, it is not the right to be forgotten of the individual concerned that applies (cf. Article 17.1 of the GDPR) but rather the right of the defendant to archive personal data in the public interest. The data relating to baptism indeed constitute historical facts that, according to the defendant, must be treated as such to prevent the baptism register from losing its objective historical value. Moreover, the departure from the Roman Catholic Church must also be considered a historical fact, namely that the wish of the individual concerned to leave the Roman Catholic Church has been taken into account.
- Finally, the defendant recalls the fact that Belgian and European law do not automatically take precedence over canon law and that the Roman Catholic Church enjoys absolute freedom of internal

organization under the principle of separation of Church and State. In particular, the removal of a believer from the baptism register at their request, by a marginal annotation, involves an official act that can only be performed by the parish priest or their assistant. Making these acts unreadable constitutes, on the other hand, an act that, under applicable canon law, cannot legally be performed by the parish priest or their assistant. In conclusion, the defendant asserts that this manner of proceeding can be considered "generally known," "so that the impossibility of deleting baptism data cannot be surprising."

I.1.2. Standard Response from the Diocese of Ghent

15. The defendant also attaches to its initial conclusions the standard response to requests for removal from the baptism registers. In its reply, it further emphasizes that this is the standard response used by all dioceses.

16. The defendant's standard response to individuals exercising their right to be forgotten is worded as follows (free translation):

"Dear Sir/Madam,

Your request for removal from the baptism registers has been acknowledged by a marginal annotation in the baptism register, in accordance with the applicable canon law of the Catholic Church. Contrary to what you believe, the entry into force of the GDPR has not changed this procedure."

Decision on the merits 169/2023 — 7/60

The data recorded in parish registers are historical facts. The historical fact of baptism concerns both the baptized individual and the community of the Catholic Church as a whole. The removal of this data at the unilateral request of the individual wishing to leave the ecclesiastical community does not take into account the rights of the still-active members of this Church community, even in light of potential identity fraud. The importance of baptism registers properly maintained by the Roman Catholic Church as archives is confirmed in Belgium, even after the introduction of the principle of separation of Church and State by the Constitution in 1831, by the fact that they are transferred to the State Archives (in private archives) after one hundred years. If concerned individuals could make changes to these archives, they would lose their value for the public interest (cf. art. 17.3.d) of the GDPR). If you disagree with this viewpoint, you may seek mediation from the delegate for data protection of the Roman Catholic Church of Belgium, [...], the Secretary General of the Conference of Bishops of Belgium, [...] and/or the Belgian Data Protection Authority, which is informed of our viewpoint (you can find more information about the Data Protection Authority and its contact details by clicking on this link: <https://www.autoriteprotectiondonnees.be/citoyen>). [...] [...]

Hoping that this response will be useful to you, we express our distinguished salutations. [...]

I.1.3.

Letter of 2018

17. In the context of its defense, the defendant attaches to its conclusions the note from the Secretary General of the Conference of Bishops that it had already submitted to the Data Protection Authority in 2018, so that the Contentious Chamber must consider it as an integral part of its defense arguments. This note essentially contains the same arguments as those put forward in its defense and clarifies a number of questions directly related to the present case.

18. Firstly, the Secretary General believes that the GDPR must be read in light of Article 17 of the Treaty on the Functioning of the European Union (TFEU), as confirmed by Recital 165 of the GDPR:

Decision on the merits 169/2023 — 8/60

"This Regulation respects and does not prejudice the status enjoyed under the applicable constitutional law by churches and religious associations or communities in the Member States, as recognized by Article 17 of the Treaty on the Functioning of the European Union."

19. Furthermore, it is indicated that in its case law regarding freedom of religion and freedom of organization, the European Court of Human Rights (hereinafter: ECtHR) always links the individual aspects and the collective aspects in the practice of religious communities, the established viewpoint

implying that the freedom of association and the freedom of religion — respectively Articles 11 and 9 of the European Convention on Human Rights — are closely related (emphasis by the Secretary General):

“When the organization of the religious community is at stake, Article 9 must be interpreted in light of Article 11 of the Convention, which protects associative life against any unjustified interference by the State. Viewed from this angle, the right of the faithful to freedom of religion implies that the community can function peacefully, without arbitrary interference from the State. Indeed, the autonomy of religious communities is essential to pluralism in a democratic society and is therefore at the very heart of the protection offered by Article 9. It presents a direct interest not only for the organization of the community as such but also for the effective enjoyment by all its active members of the right to freedom of religion. If the organization of community life were not protected by Article 9 of the Convention, all other aspects of the individual's freedom of religion would be weakened.”

20. Moreover, emphasis is placed on Article 9.2.d) of the GDPR as the basis for processing personal data in the baptism register. Indeed, this provision provides exceptions to the general prohibition on processing particular categories of personal data and specifically states that such a prohibition does not apply when the processing is carried out by a non-profit organization pursuing a religious purpose, within the framework of its legitimate activities and with appropriate safeguards, provided that the processing in question relates exclusively to the members or former members of that organization and that the personal data are not disclosed outside of that organization without the consent of the individuals concerned.

3 ECtHR, October 26, 2000, No. 30985/96 Hasan & Chaush/Bulgaria, para. 62; ECtHR, April 8, 2014, No. 70945/11, 23611/12, 26998/12, 41150/12, 41463/12, 41553/12, 54977/12 and 56581/12, Magyar Keresztény Mennonita Egyház e.a./Hungary, para. 77; ECtHR (GC) June 12, 2014, No. 56030/07, Fernandez Martinez/Spain, para. 127.

Decision on the merits 169/2023 — 9/60

21. Regarding the question of whether the Code of Canon Law or the Codex Iuris Canonici (hereinafter: CIC), which contains the law specific to the Roman Catholic Church, meets the description of "legislative measure" by the European legislator, the Secretary General of the Conference of Bishops of Belgium refers to Recital 41 of the GDPR. This recital indeed specifies that the notion of "legislative measure" in the GDPR does not necessarily have to be a legislative act adopted by a parliament. However, it must be a clear and precise legal basis or legislative measure, the application of which must be foreseeable for the subjects of law.

22. Furthermore, the prevention of identity fraud within the Church would be supported by Recital 47 of the GDPR, which explicitly states that the processing of personal data strictly necessary for the purposes of fraud prevention may also constitute a legitimate interest of the data controller.

23. According to the Secretary General, it is also important to take into account the historical evolution of parish registers, which, prior to the introduction of civil status, constituted the only source of registration "for the vast majority of the inhabitants of cities and villages." According to the Secretary General, the importance of baptism registers properly maintained by the Roman Catholic Church has been confirmed in Belgium in the Constitution, even after the introduction of the principle of separation of Church and State, by the fact that baptism registers are transferred to the state archives after one hundred years. If concerned individuals were allowed to make changes in these archives, they would lose their value for the public interest.

24. Moreover, the argument that a lifetime retention of personal data in baptism registers does not meet the reasonable expectations of the concerned individuals could also not be convincing, according to the Secretary General. The constant doctrine of the Roman Catholic Church indeed holds that baptism is the foundation of the entire Christian life and cannot therefore be repeated. In every Roman Catholic parish, the canonical priest — that is, the priest appointed in the parish by the competent diocesan bishop — in accordance with the specific law of the Roman Catholic Church — as also included in the most recent Code of Canon Law of 1983 or Codex Iuris Canonici — is obliged to

meticulously maintain the parish registers. A baptism register includes at least one, but generally several historical events. Thus, the register can be seen as an act comparable to a notarial act, where the priest acts as a representative of the Church, in the presence of witnesses, during a public act for the religious community.

25. It is then objected that the right to be forgotten in the context of the baptism register inevitably conflicts with the collective right of the members of the Church community to internal organizational freedom, in accordance with Articles 19 and 21 of the Constitution and Article 17 of the TFEU, as well as the prohibition of removing names from parish registers, in accordance with the CIC. A person who has formally left the Roman Catholic Church remains, according to its doctrine, baptized, whether or not they invoke their rights as a baptized person. Given that the sacrament of baptism cannot be administered multiple times, it would be necessary for the Roman Catholic Church to always know whether a person has been baptized or not. This viewpoint would furthermore be supported by Recital 4 of the GDPR (emphasis by the Secretary General):

Decision on the merits 169/2023 — 11/60

“The processing of personal data should be designed to serve humanity. The right to the protection of personal data is not an absolute right; it must be considered in relation to its function in society and balanced against other fundamental rights, in accordance with the principle of proportionality. This regulation respects all fundamental rights and observes the freedoms and principles recognized by the Charter, enshrined in the treaties, particularly the respect for private and family life, home and communications, the protection of personal data, freedom of thought, conscience and religion, freedom of expression and information, freedom to conduct a business, the right to an effective remedy and to access an impartial tribunal, and cultural, religious, and linguistic diversity.”

26. The Secretary-General further argues that the Roman Catholic Church can legitimately invoke the exceptions as formulated in Article 17.3.d) of the GDPR, namely "archiving in the public interest" in combination with the absolute right of internal organizational freedom of religious organizations, stemming from the freedom of religion.

27. The indication of the departure from the Church by a notation in the margin also meets a practical necessity, as there are examples in all dioceses of citizens who, after some time, return to their request for removal from the parish registers, and such requests can only be addressed if a notation has been made in the margin of the baptismal register.

28. Furthermore, according to the note from the Conference of Bishops of Belgium, there is no question in the practice of the Church of a "publication" as referred to in Article 21 of the Constitution, given that parish registers are not accessible to third parties and are in no way made public by the Church or transmitted to third parties.

29. Finally, the Secretary-General adopts the view that the inscription of a note in the margin is the maximum that the Roman Catholic Church can do, as this way "it responds both to the request of the concerned person (the former inactive member) to leave the Roman Catholic Church by a formal act, and to the wish of the active members of the Church community to continue to have access to the personal data recorded in the parish registers – as historical facts – and related to the sacraments of initiation and any potential consequences for the ecclesial community (for example, in the case of a religious marriage)."

I.1.4. Reply of the complainant

30. On October 13, 2021, the Dispute Chamber received the reply conclusions from the complainant.

Decision on the merits 169/2023 — 12/60

The complainant emphasizes above all that his complaint is subdivided into three parts, namely:

- i. "the notation (the written retention) of false statements by persons in authority, part of the Roman Catholic Church and acting on behalf of the Roman Catholic Church";
- ii. "the blatant denial of the unlawful nature of these mentions"; and

iii. "the refusal to delete the incorrect inscriptions."

31. The complainant then asserts that the defendant has not denied that the contested inscriptions were made in 1955 in the baptismal register, that is to say when the complainant was six days old and was under the authority of a minister of religion. Given these circumstances, the complainant believes that he did not consciously choose to enter the Roman Catholic Church, and as a result, the inscriptions do not constitute an accurate representation of reality, and the defendant is therefore processing inaccurate data concerning the complainant, in violation of Article 5.1.d) of the GDPR.

32. Furthermore, the complainant rejects the arguments put forward by the defendant regarding Articles 6.1.f) and 17.3.d) of the GDPR, as these provisions would only apply to the processing of accurate personal data, whereas according to the complainant, the contested inscriptions in the baptismal registers do not meet this condition and must therefore be irrevocably deleted.

33. The complainant further argues that the defendant cannot invoke the exceptions of Article 9 of the GDPR to process his personal data in the baptismal registers, given that:

- the complainant has never given his consent for the processing of his philosophical personal data (Article 9.2.a) of the GDPR);
- the complainant believes he has never been a member of the "association" (Article 9.2.d) of the GDPR);
- the retained inscriptions have not been made public by the complainant (Article 9.2.e) of the GDPR);
- the archiving of the complainant's personal data cannot be necessary for the establishment of statistics and there would also be no possible justification for the retention of personal data for scientific purposes (Article 9.2.j) of the GDPR); and that
- the other grounds of Article 9.2 do not apply to the specific circumstances (9.2.b), c), f), g), h), and i) of the GDPR).

Decision on the Merits 169/2023 — 13/60

Insofar as Article 9.2.j) of the GDPR would still apply and the personal data would be processed subsequently in the public interest, the complainant requests, in accordance with Article 89.1 of the GDPR, the pseudonymization of his personal data.

34. The complainant further contests that the transmission of the defendant's standard response could have prevented a complaint, that he would have requested the deletion of his personal data in accordance with Article 17 of the GDPR, that his complaint is related to freedom of religion, and that his complaint aims to challenge the rights to the autonomous functioning of churches or religious communities. According to the complainant, the note sent in 2018 to a former president of the APD is not relevant to his complaint.

35. The complainant also argues that the personal data concerning him is actually inaccurate and that the defendant has therefore committed "false statements," so that the complainant believes he can demand "that all entries in the baptismal register or any other data medium (digital or analog) concerning him be deleted immediately and definitively, without leaving any trace of the entries or recorded data." The deletion of digital data must be carried out using "digital shredding," meaning an irreversible deletion of the data.

36. Finally, the complainant believes that it is impossible for the legitimate interest of the Roman Catholic Church invoked by the defendant to prevail over the fundamental rights and freedoms of a child, who had no say at the time of his registration or entry into the Roman Catholic Church. The freedom of internal organization cannot lead to a reduction of fundamental rights for the individuals concerned in a rule of law where the principle of separation of church and state prevails.

I.1.5.

Defendant's Reply

37. On November 4, 2021, the Contentious Chamber receives the defendant's reply submissions.

38. Firstly, the complainant would wrongly speak of "false statements" and a "register of persons who adhere to the Roman Catholic faith." The baptismal register is a record in which the moment of a specific person's baptism is recorded. It does not constitute a membership register and is not used to establish the number of members of the Roman Catholic Church. According to the defendant, whether

one is a member of the Roman Catholic Church or not, or is no longer a member, does not change the accuracy of the moment when the baptism took place and therefore the data recorded in the baptismal register.

Decision on the merits 169/2023 — 14/60

39. Regarding the absence of the complainant's participation at the time of the administration of the baptism, the defendant argues that this was done at the express request of the parents or family of the complainant, not only legitimately but also legally and in accordance with the legislation. It is indeed customary for parents, or those exercising parental authority, to make choices and take legal actions on behalf of a minor.

40. Concerning the accuracy and potential updating of the complainant's personal data, the defendant notes that this was done immediately following the complainant's request through an annotation in the baptism register, which corresponds to the complainant's wishes and also respects the archival value of the baptism register. Apart from the baptism register, the Roman Catholic Church of the Diocese of Ghent does not have any other files in which the complainant's personal data is recorded.

41. Given that the processed data was obtained correctly and lawfully, contrary to the complainant's claims, the defendant asserts that the Roman Catholic Church can indeed invoke Articles 6.1.f) and 17.3.d) of the GDPR. Despite the complainant contesting that he "entered" the Roman Catholic Church, it is an irrefutable fact that he was baptized in 1955 at the request of his parents or family within the Roman Catholic Church. According to the doctrine of the Roman Catholic Church, the administration of baptism marks the moment from which the baptized individual is considered a member of the ecclesial community. Formally, the complainant was therefore recorded as a member of the Roman Catholic Church at the time of baptism, whether he perceived it as such afterwards or not, and whether he wanted it or not. The processing of the complainant's data in the baptism register also occurs in the public interest and thus in accordance with Articles 9.2.j) and 89.1 of the GDPR. Furthermore, the defendant reminds that these records are not unconditionally accessible and that in parishes and subsequently, when the records are transferred to the State Archives, appropriate organizational measures in accordance with Article 89.1 of the GDPR are taken to ensure data minimization.

42. Regarding the standard response that is used in all Belgian dioceses in the event of a request for complete deletion of personal data in parish registers, the defendant emphasizes that most individuals cease their action as soon as they are informed of the applicable exception reason, according to the defendant. The relevance of the 2018 letter, which was also attached to the defendant's first defense, can hardly be called into question given that, according to the defendant, this letter contains arguments in accordance with European law, Belgian law, and the applicable canonical law as well as Catholic theology.

Decision on the merits 169/2023 — 15/60

43. Moreover, the defendant disagrees with the assertion that the Roman Catholic Church does not comply with the GDPR by processing personal data without consent. The defendant indeed distinguishes between the processing of personal data within digital or paper files, websites, and newsletters on the one hand, and parish registers on the other. While the first category of processing is based on the consent of the individuals concerned, the second processing activity is based on Articles 6.1.f) in conjunction with 9.2.j) of the GDPR, namely the legitimate interest of the Roman Catholic Church in preventing "identity fraud."

44. Given that there is a direct link between parish registers and the administration of sacraments, the defendant believes that, considering the fundamental rights of freedom of worship as well as the separation of Church and State in Belgium, it is far from evident that an individual concerned could, under certain rights conferred by the GDPR, make irreversible changes in a register that is important for the internal functioning of the Roman Catholic Church in Belgium. In this regard, the defendant reiterates that Articles 19 and 21 of the Belgian Constitution grant churches the freedom of worship as well as absolute freedom of internal organization, whereby the Belgian State should refrain from applying the GDPR if it affects the internal life of the Roman Catholic Church.

45. In conclusion, the defendant argues that in this case, the question of whether the complainant feels engaged with the Roman Catholic Church is not the subject of discussion. What truly matters, according to the defendant, is whether the data in the baptism register is accurate and whether it was obtained lawfully.

I.1.6.

Hearing

46. On October 10, 2023, the parties are informed that the hearing will take place on November 27, 2023.

Decision on the Merits 169/2023 — 16/60

47. On October 27, 2023, both parties received a letter containing additional questions from the Contentious Chamber. The parties, particularly the defendant, are requested to respond to the questions in writing no later than November 17, 2023. These questions particularly concern the legal basis used, given that several legal bases are mentioned in the previous conclusions. It is also asked how the responsibility for processing is shared among the different entities within the Roman Catholic Church. Finally, the Contentious Chamber requests the specific modalities for the preservation of the records. The defendant's responses to these questions are included in this decision.

48. On November 27, 2023, the parties are heard by the Contentious Chamber.

49. The complainant again states during this hearing that he believes he has never been a member of the Roman Catholic Church, and therefore considers that the annotation added by the defendant following his request for removal, as well as the entry in the baptismal register, are erroneous in themselves. He finally emphasizes that he was registered by his parents against his will.

50. The defendant indicates that personal data from the baptismal registers can only be obtained if requested by the individuals themselves and if the additional useful information (name, date and place of birth, names of parents, address, place and date of baptism) is provided. Furthermore, it specifies that the Church officials must take into account Belgian (secular) law, and thus also the GDPR. In response to the members' questions, the defendant also indicates that if the person concerned does not specify where and when they were baptized, it may not always be possible to find proof of baptism.

51. On December 1, 2023, the minutes of the hearing are submitted to the parties.

52. On December 3, 2023, the Contentious Chamber receives some remarks from the defendant regarding the minutes, which it decides to include in its deliberation.

53. On December 7, 2023, the Contentious Chamber then receives some remarks from the complainant regarding the minutes, which it decides to include in its deliberation.

Decision on the Merits 169/2023 — 17/60

II. Reasoning

54. The Contentious Chamber finds, based on the documents supporting the complaint, that the complainant exercised his right to erasure against the defendant by means of a registered letter. The Contentious Chamber examines in point II.2 of this decision whether the defendant is solely responsible for the processing or jointly with another entity.

55. In summary, the defendant bases its defense on the following elements, arguing that the complainant's personal data cannot be deleted from the baptismal register:

a. the processing of the complainant's personal data in the baptismal register is not based on the consent of the individual concerned or that of his parents, but rather on the legitimate interest of the defendant and the community of the Church, given that this processing aims to prevent fraud (identity fraud) in light of the consistent doctrine of the Roman Catholic Church that baptism can only occur once;

b. a baptismal register has objective historical value, implying that it is permissible for the Roman Catholic Church to retain historical facts of baptism and departure from the Church for archival purposes in the interest of its religious community members;

c. the Roman Catholic Church enjoys, under the principle of separation of Church and State in accordance with Articles 19 and 21 of the Constitution and Article 17 of the TFEU, absolute freedom of internal organization, as a result of which the right to be forgotten provided for in Article 17 of the

GDPR would not apply to the personal data recorded in the defendant's baptismal registers. Furthermore, the defendant believes that the act of rendering baptism data unreadable is an act that cannot be legally performed by the priest or his assistant, according to the applicable canon law.

56. The Contentious Chamber will analyze in the following points the arguments put forward by the defendant.

Decision on the Merits 169/2023 — 18/60

II.1. Competence of the Litigation Chamber

57. The articles 51 in conjunction with 55 of the GDPR require that each Member State establish one or more independent public authorities responsible for monitoring compliance with the regulation. The aim is to protect the freedoms and fundamental rights of individuals regarding the processing of their personal data. Following this, a Belgian supervisory authority was created by the LCA. Article 4 of this law confirms the supervisory competence of the APD.

58. As the sanctioning body of the APD, the Litigation Chamber has clear competencies. These include examining compliance with the fundamental principles of personal data protection, both in relation to the GDPR and the laws and provisions concerning personal data protection. Under Article 57.1.f) of the GDPR, any supervisory authority must handle complaints that may be lodged in accordance with Article 77.1 of the GDPR when a data subject believes that the processing of personal data concerning them constitutes a violation of the GDPR. The authority is required to examine the subject of these complaints to the extent necessary.

59. Although several fundamental rights are at stake in the broader context of this case, the Litigation Chamber will specifically rule on the application of the GDPR and the impact of processing activities on the right to personal data protection, in accordance with the competencies assigned to it. In this regard, the Litigation Chamber may rule, within the framework of the application of the GDPR, on potential balancing between different fundamental rights. However, in this context, it does not fall within the competence of the Litigation Chamber to adjudicate certain constitutional issues, such as the relationship between the rights of the Roman Catholic Church and those of the State. Given that the Litigation Chamber is part of an administrative authority, it is also not authorized to refer preliminary questions to instances that are actually responsible for ruling on potential conflicts between fundamental rights, particularly to the Constitutional Court or the Court of Justice of the European Union.

7 Judgment of the CJEU, December 7, 2023, Joined Cases C-26/22 and C-64/22, Schufa, ECLI:EU:C:2023:958, paragraph 56.

8 This competence is specified in the draft law amending the LCA (Article 4 of the LCA, as amended), adopted on December 14, 2023, by the House of Representatives.

9 See for example the judgment of the Court of Appeal of December 1, 2021, 2021/AR/1044.

Decision on the Merits 169/2023 — 19/60

60. The defendant repeatedly indicates in its conclusions that the separation of Church and State and the freedom of religion, as well as the freedom of association, must be taken into account, as enshrined in Articles 19 and 21 of the Constitution, Article 17 of the TFEU, and Article 9.1 of the ECHR. The defendant also refers to Recital 4 of the GDPR, which states the following:

“The processing of personal data should be designed to serve humanity. The right to the protection of personal data is not an absolute right; it must be considered in relation to its function in society and balanced against other fundamental rights, in accordance with the principle of proportionality. This regulation respects all fundamental rights and observes the freedoms and principles recognized by the Charter, enshrined in the treaties, in particular respect for private and family life, home and communications, the protection of personal data, freedom of thought, conscience and religion, freedom of expression and information, freedom to conduct a business, the right to an effective remedy and to access an impartial tribunal, and cultural, religious and linguistic diversity.”

The defendant thus asserts that the application of the GDPR must be weighed against the aforementioned fundamental rights that are of public order.

61. The Litigation Chamber takes into account the relevant provisions of constitutional law and

European law that guarantee the freedom of organization for religious groups and the freedom of religion and association. These provisions include, in particular, Articles 19 and 21 of the Constitution, Article 10 in conjunction with Article 12 of the Charter of Fundamental Rights of the European Union, as well as Article 9 of the ECHR. Furthermore, the Litigation Chamber considers the special status granted to churches and religious associations and communities under Article 17, first paragraph of the TFEU.

10 See in this regard the Judgment of the ECtHR of October 26, 2000, No. 30985/96 Hasan & Chaush v. Bulgaria, paragraph 62; the Judgment of the ECtHR of April 8, 2014, No. 70945/11, 23611/12, 26998/12, 41463/12, 14553/12, 54977/12 and 56581/12, Magyar Keresztény Mennonita Egyház e.a. v. Hungary, paragraph 77, as well as the Judgment of the ECtHR of June 12, 2014, No. 56030/07, Fernandez Martinez v. Spain, paragraph 127.

11 These are, as the defendant also indicates, interconnected. October 26, 2000, No. 30985/96 Hasan & Chaush/Bulgaria, paragraph 62; ECtHR, April 8, 2014, No. 70945/11, 23611/12, 26998/12, 41150/12, 41463/12, 41553/12, 54977/12 and 56581/12, Magyar Keresztény Mennonita Egyház e.a./Hungary, paragraph 77; ECtHR, (GC) June 12, 2014, No. 56030/07, Fernandez Martinez/Spain, paragraph 127. See among others Cass. RG C.93.0238.F, October 20, 1994 (Huard / B.).
Decision on the Merits 169/2023 — 20/60

62. Although the act of disengaging from the Roman Catholic Church and the deletion of personal data of an individual from the baptismal registers are interconnected, they are considered as two distinct issues for the purposes of data protection legislation. The Contentious Chamber therefore notes that it cannot intervene in the process of leaving or exiting the Roman Catholic Church; this is, as the defendant rightly points out, a matter between the Roman Catholic Church and the (former) individual members.

63. The Contentious Chamber, on the other hand, believes that the aforementioned fundamental rights are not intrinsically contradictory. Both Recital 165 and Article 91 of the GDPR clearly indicate that there is no inherent conflict between, on one side, the existence of churches and religious associations as recognized by the Member States and, on the other side, the confirmation that a specific regime applies to the processing of data by these entities.

64. The baptismal registers also fall within the material scope of the GDPR, in accordance with Article 2 and under the jurisprudence of the Court of Justice.

65. The defendant does not contest that the GDPR applies to the baptismal registers. This is also explicitly stated by the Chancellor of the Diocese of Ghent in his letter of September 14, 2021, to the President of the Contentious Chamber: "The application of the GDPR by the Roman Catholic Church to files of individuals comparable to other organizations is not disputed. The Catholic Church of Belgium fully complies with the GDPR privacy regulations for all digital or paper files, websites, newsletters, etc., with the exception of parish registers [...]".

12 See also H. KRANENBORG, "Article 8 – Protection of Personal Data" in S. PEERS, et al., (eds.), The EU Charter of Fundamental Rights – A commentary, Hart Publishing, 2021, 242.

13 Opinion of the AG in CJEU, C-25/17, Jehovan Todistajat, EU:C:2018:551, §34.

14 See the judgment CJEU C-25/17, Jehovan Todistajat, EU:C:2018:551.

Decision on the Merits 169/2023 — 21/60

66. The GDPR defines the notion of "personal data" as any information relating to an identified or identifiable natural person, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more specific elements concerning the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person. There is no doubt that the data contained in the baptismal registers constitutes personal data within the meaning of the GDPR. The Contentious Chamber further considers that the complaint concerns a particular category of personal data in accordance with Article 9 of the GDPR, specifically personal data that may reveal religious or philosophical beliefs.

67. The material scope of the GDPR is defined in Article 2.1 as all automated processing in whole or in part as well as the processing of personal data contained or intended to be contained in a file. The fact

that the baptismal registers are exclusively maintained manually does not imply, according to the defendant, that such registers fall outside the scope of the GDPR, given the specific criteria under which personal data is recorded in a structured manner (year of baptism, last name, first name, parish, name and surname of the godfather/godmother). It follows that the baptismal registers can be considered as a "file" within the meaning of Article 2, paragraph 1 of the GDPR. Therefore, the Contentious Chamber believes that the GDPR indeed applies to the processing of the complainant's personal data by the defendant as it concerns personal data that is included in a file. This applies not only to the defendant but also to all entities of the Roman Catholic Church that process personal data in a similar manner.

68. The Contentious Chamber concludes that the GDPR applies to the processing of personal data in the baptismal registers of the Roman Catholic Church. This implies that the Contentious Chamber is competent to judge whether the defendant's response to the exercise of the right to erasure (cf. Article 17 of the GDPR) of the complainant's personal data occurred in accordance with the GDPR.

15 Article 4.1 of the GDPR.

16 The personal data processed in the baptismal register includes: last name and first name, date of baptism, place of birth, name of the mother/father with indication of their parish, name of the godfather/godmother, any administration and date of confirmation and marriage sacrament, signature of the godfather/godmother and the parents.

17 Recital 15 of the GDPR.

18 CJEU, Judgment of July 10, 2018, *Tietosuoja-valtuutettu and Jehovan todistajat – religious community*, C-25/17, ECLI:EU:C:2018:551, para. 52-62.

Decision on the Merits 169/2023 — 22/60

II.2. Responsibility for the Processing of Personal Data in Baptism Registers

69. Before addressing the complainant's grievances, the Contentious Chamber examines who is responsible for the processing of data in this case. The GDPR defines a "data controller" as an entity that, alone or jointly with others, determines the purposes and means of processing personal data.¹⁹ This definition must be interpreted in light of the legislator's intention to assign primary responsibility for the protection of personal data to the entity that actually exercises control over the data processing.

70. In its judgment on the *Jehovah's Witnesses*²⁰, the Court of Justice provides a detailed explanation regarding the notion of data controller. The European Data Protection Board (hereinafter: EDPB) follows this line.²¹ These elements are relevant and apply to the present situation, as they clarify that the definition of data controller must be interpreted broadly to ensure "effective and complete protection of the data subjects."²²

71. The EDPB has specified that the concept of data controller concerns the impact of the data controller on data processing, based on a decision-making competence or control over processing activities. Such control may arise from legal provisions, implicit competence, or be based on the exercise of de facto influence.²³ Therefore, it is necessary to consider the actual activities of an entity in a specific situation and not (only) the person who is formally considered the data controller (or processor).

19 Article 4(7) of the GDPR.

20 CJEU, Judgment of July 10, 2018, *Tietosuoja-valtuutettu and Jehovan todistajat – uskonnollinen yhdyskunta*, C-25/17, ECLI:EU:C:2018:551.

21 See EDPB Guidelines 07/2020, point 14.

22 CJEU, Judgment of May 13, 2014, *Google Spain SL v. Agencia Española de protección de Datos (AEPD) et al.*, C-131/12, ECLI: EU:C:2014:317, para. 34; see also the discussion regarding the scope of the notion in C. DOCKSEY and H. HIJMANS, "The Court of Justice as a Key Player in Privacy and Data Protection," *European Data Protection Law Review*, 2019, Vol. 3, (300)304.

23 EDPB Guidelines 07/2020 on the concepts of controller and processor in the GDPR, see 2.0, 2021, para. 20 e.s.; L.A. BYGRAVE & L. TOSONI, "Article 4(7). Controller" in *The EU General Data Protection Regulation. A Commentary*, Oxford University Press, 2020, 148.; D. DE BOT, *The application of the General Data Protection Regulation in the Belgian context*, Wolters Kluwer, 2020,

para. 362.

Decision on the Merits 169/2023 — 23/60

72. The Roman Catholic Church in Belgium has a single ecclesiastical province, composed of the Archdiocese of Mechelen-Brussels and seven suffragan dioceses, each consisting of deaneries and parishes.²⁴ Given that the complaint only targets the Diocese of Ghent and – as outlined below – it is sufficiently evident from the circumstances and facts that the diocese bears at least part of the responsibility for processing, the Contentious Chamber will only address the Diocese of Ghent in its decision. This does not prejudice the possibility that, in this case, other entities may have joint responsibility for processing or may be involved in the processing activities.

73. The Roman Catholic Church in Belgium has a multi-level hierarchical structure, where the Conference of Bishops appears as the umbrella organization overseeing all individual dioceses. This Conference of Bishops constitutes a platform for ongoing consultation within the Roman Catholic Church in Belgium, where all bishops and auxiliary bishops can jointly determine the policy of the Belgian ecclesiastical province.²⁵ According to the defendant, the Conference of Bishops should only be viewed as a consultative body, with the effective responsibility for processing resting with the individual dioceses that are part of it.

74. In response to one of the supplementary questions posed by the Contentious Chamber in preparation for the hearing, the defendant communicated the following: (free translation)

"By virtue of their supervisory position, the diocesan bishops are also involved in how priests concretely manage the baptism registers in the parishes. They have the possibility to enact specific rules (what is called particular canon law) either alone (for their diocese) or jointly with their fellow bishops for all dioceses belonging to a specific ecclesiastical province, within the broader framework of universal ecclesiastical law. This occurred in Belgium in 2017 when the diocesan bishops made the following decision regarding the baptism of children: 'As of January 1, 2018, the sacrament of baptism will only be recorded in the baptism register of the parish where the baptism takes place.' [...]
Concretely, this means that the priest and the diocesan bishop are jointly responsible for the processing of personal data in the baptism register. To support this, reference is also made to the well-reasoned conclusion of the Data Protection Authority of Ireland regarding this issue. [...]"

24 See <https://www.kerknet.be/bisschoppenconferentie/artikel/de-belgische-kerkprovincie#:~:text=De%20Belgische%20kerkprovincie%2C%20bestaat%20uit,offici%C3%ABle%20naam%20van%20de%20kerkprovincie..>

25 See <https://www.kerknet.be/organisatie/bisschoppenconferentie>.

Decision on the merits 169/2023 — 24/60

75. What the defendant asserts above is confirmed in the canons of the Code of Canon Law (CIC) itself. Although the CIC is not determinative for establishing who has actual responsibility for the processing, it nonetheless allows for an understanding of the organization and structure of the Roman Catholic Church in Belgium.

76. Canon 535, § 1 of the CIC states that "Each parish shall have its parish registers, namely the registers of baptisms, marriages, deaths, and others according to the provisions of the conference of Bishops or the diocesan Bishop; the pastor shall ensure that they are properly maintained and carefully preserved." The diocesan Bishop (or his delegate) is obliged, under Canon 535, § 4 of the CIC, to inspect the existence of the parish registers during the visit or on another occasion, as well as the confidential preservation of these registers.

77. Canon 515, § 1 of the CIC provides more broadly that a parish is under the authority of the diocesan Bishop. This Bishop has the competence to establish/modify/remove parishes and to appoint priests. Furthermore, it can be inferred from the CIC that the diocesan Bishop has broad decision-making authority regarding his diocese. Canon 473, § 1 of the CIC states that: "The diocesan Bishop must ensure that all matters concerning the administration of the entire diocese are properly coordinated and organized in order to best ensure the good of the portion of the people of God entrusted to him."

78. Based on the above, the Contentious Chamber concludes that the defendant correctly indicates

that there is joint responsibility for processing between the dioceses and the parishes themselves. The diocesan Bishop has a certain degree of control and decision-making power regarding the organization and management of the parishes. Although the parishes do indeed have some freedom according to the CIC, this margin is contained by the diocesan Bishop. Regarding the responsibility for processing, the Contentious Chamber concludes that the dioceses, including the Diocese of Ghent – in this case, the defendant – are jointly responsible for processing with each distinct parish within their region.

79. Although this exceeds the scope of the complaint, the Contentious Chamber emphasizes in this regard that the various entities must conclude task-sharing agreements as required by Article 26 of the GDPR.

26 Canon 515, § 2 of the CIC.

27 Canon 521, § 3 of the CIC.

28 See for example Canons 381, § 1, 391, §§ 1-2, 392, §§ 1-2, 393, 473, § 1, 491, §§ 1-3 of the CIC.

Decision on the merits 169/2023 — 25/60

II.3. Principles relating to the processing of personal data

II.3.1. Obligation to inform

80. In accordance with Article 5.1.a) of the GDPR, any processing of personal data must be fair, transparent, and lawful. The obligation of transparency in this principle must be read in conjunction with the obligation set out in Article 13 of the GDPR, which specifies the information that must be communicated by the data controller to the data subject.

81. During the hearing on November 27, 2023, the question of how data subjects are informed about the processing that takes place concerning baptism was addressed. The defendant indicated that the data subject (more specifically, their parents or guardians) receives a form that also contains a privacy statement. This form, of which an updated version has been submitted to the Contentious Chamber, would still be used to this day. Furthermore, the defendant indicated that no other document is provided to the data subjects regarding the processing of personal data in the context of baptism and any subsequent sacraments.

82. The form includes the following regarding the processing of personal data in the baptismal register(s):

"My personal data as well as my child's data may be processed in a file in order to facilitate my child's baptism, first communion, or confirmation."

No other information is provided in accordance with the requirements of Article 13 of the GDPR.

29 <https://www.kerknet.be/sites/default/files/20220516%20Aanvraag%20initiatiesacramenten%20Print.pdf>

Decision on the Merits 169/2023 — 26/60

83. Given that no further information is provided, and this was also confirmed during the hearing on November 27, 2023, the individual concerned is not aware of the elements stated in paragraphs 1 and 2 of Article 13 of the GDPR. There is also no reference to where conclusive information can be found, although such information exists; privacy statements are indeed accessible via, among other sources, the website www.kerknet.be. Furthermore, the Dispute Chamber notes that at the time of making this decision, not all information requirements of Article 13.2 are included in these online privacy statements. For example, they do not specify the period during which personal data will be retained.

84. This is not only important regarding the (non-)compliance with the information obligation but also in relation to what the individuals concerned (or their parents or guardians) can reasonably expect from the processing of personal data.

85. The Dispute Chamber therefore finds that the information obligation under Article 13 of the GDPR is not duly respected by the defendant. At the time of the baptism, the individuals concerned are indeed not informed about the processing that will be carried out, for what purposes, and on what legal basis. The Dispute Chamber fully realizes that the complainant's baptism took place in 1955, at a time when there was no regulation regarding the processing of personal data. However, it is indeed the defendant's responsibility to comply with such regulations after their entry into force. For baptisms that take place after the entry into force of the GDPR, the current method of informing the individuals

concerned is also not sufficient to meet the defendant's information obligation.

86. During the hearing, the defendant indicated that articles had been written in the quarterly Intercontact, published by the Interdiocesan Center. In some of the articles that were communicated to the Dispute Chamber, the aforementioned aspects are indeed addressed, but the Dispute Chamber remains of the opinion that this does not fulfill the information obligation under Article 13 of the GDPR. Especially since these periodicals are only available for a fee.

87. The Dispute Chamber therefore finds a violation of Articles 5.1.a) (transparency) and 13 of the GDPR.

30 See for example <https://www.kerknet.be/www.bisdongent.be/privacyverklaring>.

31 See <https://www.interdio.be/?menu=overons&tl;=nl>.

Decision on the Merits 169/2023 — 27/60

88. In addition to the general information obligation set out in Article 13 of the GDPR, Articles 12.1, 12.3, and 12.4 of the GDPR contain an information obligation when a request under Articles 15 to 22 inclusive is made by an individual concerned.

89. At the request of the complainant, the defendant responded with the following communication: "I can inform you that your exit from the Catholic Church has been recorded on the list of individuals who have left the Church of the parish of Ghent on March 24, 2021. (1955 No. 536) baptism register 'Toevlucht van Maria'. You are free to personally verify this annotation in the baptism register."

90. The Dispute Chamber believes that this response does not include the information required in accordance with Articles 12.1, 12.3, and/or 12.4 of the GDPR.

91. However, the defendant indicates in its initial conclusions that it has a "standard response" to respond to requests for erasure from individuals concerned and that this is not the response that was initially sent to the complainant. This standard response is attached by the defendant to its initial conclusions. However, this response includes the reasons why the request was left unanswered (namely the exception of Article 17.3.d) of the GDPR), as well as the possibility to contact the Data Protection Authority in case of disagreement. In other words, the information obligation set out in Article 12.4 of the GDPR is indeed respected.

92. Although the existence of such a standard response is possible, the Dispute Chamber must note that it was not sent to the complainant in the context of the present file when he submitted a request for erasure.

93. The defendant writes the following regarding Article 12.4 of the GDPR: "It is unfortunate that you [the complainant] did not address your complaint to the Diocese of Ghent. In that case, the information would have been sent to you directly in accordance with Article 12.4 of the GDPR, and an appeal to the Dispute Chamber might have been avoided (see Annex 1 [which contains the standard response])." Given that individuals concerned should have already been informed in accordance with Article 12.3 or 12.4 of the GDPR after the first request for erasure (or any other request under Articles 16 to 22 inclusive of the GDPR) and that they should not have to first ask additional questions about this before being able to obtain the useful information, the Dispute Chamber finds a violation of Article 12.4 of the GDPR.

Decision on the merits 169/2023 — 28/60

II.3.2. Integrity and Confidentiality

94. Article 5.1.f) of the GDPR requires that appropriate technical and organizational measures be taken to ensure an adequate level of security and that personal data be protected against unauthorized or unlawful processing and against accidental loss, destruction, or damage.

95. According to canon law, each parish must have a place of storage or archives where parish registers as well as letters from bishops and other documents whose preservation is necessary or useful are kept; the parish priest must ensure that all these documents, which must be inspected by the Diocesan Bishop or his delegate during the visit or at any other appropriate time, do not fall into the hands of outsiders.³² In connection with this obligation, older parish registers must also be preserved with the same care.³³

96. The defendant emphasizes several times in her defense that the baptism archives benefit from the

necessary security measures. Access to the archives would be limited to the priest or his delegate, and a copy of the baptism certificate would only be provided at the request of the concerned individual. Furthermore, the defendant also indicates that the actual implementation of these measures depends on the priest in the relevant parish. It is his responsibility to concretely implement these measures.

97. The defendant repeatedly highlights this aspect in her argumentation aimed at convincing the Contentious Chamber that the processing of personal data is carried out in a secure and confidential manner. She also argues that the impact on the right to personal data protection is minimal given that this personal data is not communicated to third parties nor made available to them. However, the Contentious Chamber does not have the ability to verify whether such measures are actually applied in practice. Therefore, it finds that the measures taken regarding the principle of integrity and confidentiality, as set out in Article 5.1.f) of the GDPR, are considered *prima facie* adequate. This element will be included in the subsequent balancing of interests in this decision.

32 Canon 535, § 4 of the CIC.

33 Canon 535, § 5 of the CIC.

Decision on the merits 169/2023 — 29/60

II.4. Lawfulness of Processing

98. Article 5.1.a) of the GDPR requires that "personal data shall be processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, transparency')." The principle of lawfulness is one of the most important principles of the GDPR and serves as a condition for the application of the other principles of the GDPR relating to the processing of personal data.

99. If there is processing of special categories of personal data in accordance with Article 9.1 of the GDPR, the data controller must designate a legal basis in accordance with Article 6 of the GDPR as well as a justification for the exception in Article 9.2 of the GDPR in order to speak of lawful processing. This combination of a legal basis from Article 6 and Article 9.2 of the GDPR stems in particular from the Meta ruling (C-252/21) of the Court of Justice³⁴ in which the Court expressly states that the processing of sensitive personal data is only permitted if such processing can be qualified as lawful under Article 6.1 of the GDPR. The Opinion 2/2019 of the EDPB³⁵ and the Opinion 06/2014 of the Article 29 Working Party on data protection³⁶ also logically refer to the application of both Article 6 of the GDPR and Article 9 of the GDPR in the case of processing a special category of personal data. Recital 51 of the GDPR clearly indicates that Article 6 must always be applied.

100. It is the responsibility of the data controller to determine what the appropriate legal basis is in light of the purpose of the processing.³⁷ Given that different consequences arise from the choice of legal basis, particularly in terms of rights for the data subjects, the data controller is not permitted to rely on one or the other legal basis at will depending on the circumstances. Once a specific legal basis is chosen, the aim is not to switch from one to another or, when the chosen legal basis ceases to apply, to revert to another legal basis for the same processing activity, for the same purposes.³⁸

34 CJEU, Judgment of July 4, 2023, Meta, C-252/21, ECLI:EU:C:2023:537, para. 90.

35 Opinion 2/2019 (EDPB) on questions and answers regarding the interaction between the Clinical Trials Regulation and the General Data Protection Regulation (GDPR) (Article 70, paragraph 1, point b)) of January 23, 2019.

36 Opinion 06/2014 (WP 29) on the notion of "legitimate interest pursued by the data controller" in Article 7 of Directive 95/46/EC.

37 See also Decision 77/2023, § 74, of the Contentious Chamber.

38 See for example Decisions 38/2021, 54/2023, and 77/2023 of the Contentious Chamber.

Decision on the Merits 169/2023 — 30/60

101. This is clearly stated in the GDPR. Article 5.1(b) of the GDPR requires that personal data be "collected for specified, legitimate purposes and [not] further processed in a manner that is incompatible with those purposes; [...] (purpose limitation)." When the same processing pursues multiple purposes, each purpose must be based on a lawful basis.³⁹

102. The defendant provides the following legal bases in its conclusions as the basis for the processing of personal data in baptism registers: Article 6.1(f) of the GDPR, read in conjunction with

Article 9.2(d) (and Article 9.2(j)) of the GDPR. The Contentious Chamber will examine these bases below.

II.4.1. Legitimate Interest for the Processing of Personal Data Related to Religious Beliefs in Baptism Registers

103. Article 6.1(f) of the GDPR states that processing is lawful if "the processing [is] necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, unless the interests or fundamental rights and freedoms of the data subject which require protection of personal data prevail, in particular when the data subject is a child."

104. The case law of the Court of Justice of the European Union requires that reliance on Article 6.1(f) of the GDPR meets three cumulative conditions, namely, first, the pursuit of a legitimate interest by the data controller or by the third party to whom the data is disclosed, second, the necessity of processing the personal data for the realization of the legitimate interest pursued, and third, the condition that the rights and fundamental freedoms of the data subject regarding data protection do not prevail.⁴⁰

39 See also Decision 77/2023, § 77, of the Contentious Chamber.

40 Judgment of May 4, 2017, *Rīgas Satiksme*, C-13/16 ECLI:EU:C:2017:336, para. 28, and CJEU, Judgment of December 7, 2023, *Joined Cases C-26/22 and C-64/22, Schufa*, ECLI:EU:C:2023:958, para. 74.

Decision on the Merits 169/2023 — 31/60

105. In other words, the data controller must demonstrate that:

- a. the interests it pursues with the processing can be recognized as legitimate (the "purpose test");
- b. the intended processing is necessary to achieve those interests (the "necessity test"); and
- c. the balancing of these interests against the interests, freedoms, and fundamental rights of the data subjects weighs in favor of the data controller or a third party (the "balancing test").

106. The Contentious Chamber will verify below whether these three cumulative conditions are met so that the defendant can invoke Article 6.1(f) of the GDPR as the legal basis for the processing of personal data in baptism registers.

107. The purpose test. First, the Contentious Chamber must verify whether the interests pursued by the processing are legitimate.⁴¹ The defendant states that the purpose of the processing is to prevent identity fraud concerning the administration of sacraments. Indeed, the defendant asserts that: "baptism must be regarded as the foundation of the entire Christian life and cannot be repeated, hence the necessity of recording and controlling the registration in light of identity fraud." Baptism must therefore be considered as the means of entering the Roman Catholic Church. It further emphasizes that the baptism register is the central register for the Roman Catholic Church and cannot simply be compared to other registers, as baptism grants rights to the individuals concerned.

108. The defendant also refers to the provisions included in the CIC. Thus, the baptism register should also contain, in addition to baptism data, information on registration with the Roman Catholic Church, confirmation, and the canonical status of the believer regarding marriage, adoption, reception of a sacred order, as well as perpetual profession in a religious institute, a change of rite. This information must also be included on the baptism certificate.⁴²

41 See Opinion 06/2014, pp. 26 et seq. on the notion of legitimate interest pursued by the data controller within the meaning of Article 7 of Directive 95/46/EC (WP217), which distinguishes between a purpose and an interest: "The notion of 'interest' and that of 'purpose', mentioned in Article 6 of the Directive, are closely related but nonetheless distinct. In the context of data protection, 'purpose' is the specific reason for which the data is processed: the aim or intention of their processing. The interest, on the other hand, is the broader stake pursued by the data controller, or the benefit it derives – or that society could derive – from the processing."

42 Canon 535, § 2 of the CIC. These registers must be maintained in accordance with the provisions of Canon 535, § 4 of the CIC.

Decision on the merits 169/2023 — 32/60

109. Although the CIC does not have a specific purpose regarding the preservation and maintenance of the baptismal register, the Contentious Chamber believes that the aforementioned canons allow for

the deduction that parish registers indeed serve to administer sacraments and to consult, for each believer, an accurate record of the sacraments that have already been administered or not. It is thus also possible, for example, for the priest to produce a certificate of the baptismal status of the person concerned in order to prove that sacraments have been administered in the past.

110. The Contentious Chamber further notes that when a freedom or fundamental right is expressed, it must be considered a legitimate interest. Given that the defendant also relies on the freedom of religion and association—two fundamental rights also enshrined in the ECHR, the Charter of Fundamental Rights of the European Union, and the Belgian Constitution—it is established that a legitimate interest is pursued. The establishment and maintenance of a baptismal register would indeed serve to enable the correct administration of sacraments in the Roman Catholic Church and thus fall under the organization of a religious community, which can be considered legitimate according to the Contentious Chamber.

111. Furthermore, the prevention of identity fraud is mentioned in recital 47 of the GDPR as a possible legitimate interest of the data controller, as the defendant rightly indicates in its conclusions. Thus, according to the Contentious Chamber, the purpose test is passed.

112. The defendant further emphasizes that baptism is a public event that must be documented for historical and archival purposes. The baptismal register or the mention of a baptism therein would function as a register of notarial acts, with the priest acting as the representative of the Church, in the presence of witnesses, in a public act for the religious community. The fact that the priest mentions the baptism in the baptismal register creates a document of historical value, according to the defendant. The defendant indicated during the hearing that research is conducted in the baptismal registers, including genealogical research.

43 See among others W. KOTSCHY, “Article 6 Lawfulness of processing”, in C. KUNER, et al., (eds.), *The EU General Data Protection Regulation (GDPR). A Commentary*, Oxford University Press, 2020, 337.

44 The French Court of Cassation confirmed in 2014 that a Catholic baptism is not a private event but a public one: Court of Cassation, 1st Civ. 19/11/2014, appeal no. 13.25156.

Decision on the merits 169/2023 — 33/60

113. Although the Contentious Chamber believes that such a register can indeed have historical interest, it cannot be denied that the defendant's interest in this case is to retain personal data in order to allow for the administration of sacraments in accordance with the doctrine of the Roman Catholic Church and to prevent a concerned person from being baptized twice. The archival value associated with the baptismal register cannot therefore, according to the Contentious Chamber, be considered a distinct purpose. Archiving solely for the purpose of archiving, or in the hope that research may eventually be conducted later on the retained personal data, cannot be considered a legitimate interest. The Contentious Chamber will elaborate on this subject in point II.4.4.

114. Given that preventing the administration of sacraments to ineligible persons is considered a legitimate interest by the Contentious Chamber, the processing passes the purpose test.

115. The necessity test. Personal data processing based on legitimate interest must be necessary according to the meaning given to this term by the Court of Justice (among others). In its *Rigas* judgment, the Court of Justice emphasized that the term “necessity” must be interpreted restrictively. This test is linked to the principle of purpose limitation set out in Article 5.1.b) of the GDPR and the principle of data minimization enshrined in Article 5.1.c) of the GDPR. Thus, the intended processing activity is not permitted when less intrusive measures are possible to achieve the purpose of the processing, and only personal data that is necessary, adequate, and relevant may be processed for the purpose(s).

116. Currently, the Roman Catholic Church maintains baptismal registers that are kept by parish. The following personal data is recorded therein: last name and first name, date of baptism, place of birth, name of the mother/father with indication of their parish, name of the godfather/godmother, any

administration and date of the sacrament of confirmation and marriage, signature of the godfather/godmother and parents. The registers exist only on paper. There is no electronic version available.

45 CJEU, Judgment of December 16, 2008, Heinz Huber v. Federal Republic of Germany, C-524/06, ECLI:EU:C:2008:724, para. 52.

46 CJEU, Judgment of May 4, 2017, Rīgas Satiksme, C-13/16 ECLI:EU:C:2017:336, para. 30.

47 WP29 Opinion No. 03/2013 on purpose limitation of April 2, 2013, p. 15.

48 An excerpt from the baptismal register was submitted to the Contentious Chamber by the defendant.

Decision on the merits 169/2023 — 34/60

117. Using a "request for an extract from the baptism register" or "petitur extractum e libro baptismorum" form, proof of the baptism of a concerned person can be requested from the parish where the baptism took place. Such a form includes the following personal data, which must allow verification of whether the concerned person was baptized in another parish: surname and first name, date and place of birth, names of the father and mother, parents' address at the time of birth, date and place of baptism. In this way, the priest or the dean of the parish where the baptism is said to have taken place can verify whether the baptism indeed occurred.

118. The defendant indicates that when a concerned person requests the administration of a new sacrament, they voluntarily provide the necessary personal data to verify whether they have received the relevant sacraments (or not yet).

119. However, the Contentious Chamber notes that without the cooperation of a concerned person, such verifications are not possible. Given that baptism registers are still maintained by parish, inter-parish (or even cross-border) searches depend on the cooperation of the concerned persons who must indicate themselves where their baptism took place. Indeed, it is impossible to find proof of baptism without the necessary leads, as these are paper records kept by parish. The defendant emphasized during the hearing on November 27, 2023, that the current method has not posed any problems so far. If a concerned person wishes to receive a new sacrament, such as marriage, they can, in most cases, receive proof of prior sacraments so that the sacrament can be administered in accordance with the prescriptions of the Roman Catholic Church.

120. Although the Contentious Chamber recognizes that a concerned person can demonstrate using baptism registers that they have, for example, been baptized, it must nonetheless note that this does not prevent a concerned person from receiving the same sacrament twice, even though this is prohibited by the doctrine of the Roman Catholic Church. The Contentious Chamber finds that in practice, no verification is possible without the cooperation of the concerned persons. Furthermore (and this statement is also made by the defendant herself during the hearing on November 27, 2023), it is possible that even if the concerned person cooperates, proof of baptism may not be found (for example, when the concerned person is not certain of the exact parish). It would thus be particularly difficult in large cities to locate the entry in the baptism register of the place where this concerned person was baptized.

Decision on the merits 169/2023 — 35/60

121. Furthermore, the Contentious Chamber takes into account Canon 869 of the CIC. According to this Canon, if there is doubt that a person has been baptized or that the baptism was administered validly, the baptism will be administered conditionally. It follows that it is possible, albeit under certain conditions, to be baptized a second time.

122. Based on these elements, the Contentious Chamber concludes that the current processing of personal data cannot be considered necessary, in accordance with the GDPR as interpreted in the case law of the Court of Justice, to achieve the intended purpose (preventing identity fraud during baptisms). This processing is indeed not appropriate to establish with certainty whether a person has already been baptized.

123. Finally, the Contentious Chamber examines the annotation made when the concerned person expresses their wish to (no longer) be a member of the Roman Catholic Church. The defendant indicates that it is noted in the baptism register that the concerned person "has left the Community of the Church" on the "date of departure." When a concerned person indicates that they no longer wish to be part of the Roman Catholic Church, an annotation is added. This is relevant in this case because such a request for departure is often accompanied by a request for removal from all registers of the Roman Catholic Church. The Contentious Chamber notes that if a concerned person chooses to no longer be part of the Roman Catholic Church and submits a request for removal, additional data is processed. Furthermore, this data can be considered even more sensitive, as it pertains to leaving the Roman Catholic Church, which reflects a generally well-considered decision by the concerned person to distance themselves from this religious community.

124. The defendant indicates that the processing of personal data remains necessary given that there is a risk that "the person who has left the Church" may later change their mind and request "reinstatement." As a result, the exit process must be reversible, which explains why personal data is retained indefinitely, even if the concerned person has left. The stated purpose, namely the verification of identity and the possibility of properly administering sacraments, remains necessary, according to the defendant.

Decision on the Merits 169/2023 — 36/60

125. The Dispute Chamber considers that the interest is in itself legitimate (see above), but that the manner in which it is pursued does not comply with the requirement of necessity. Given the case law of the Court of Justice, which emphasizes that this requirement of necessity must be interpreted restrictively and taking into account the requirements that the processing of personal data must be relevant, adequate, and as minimal as possible, the Dispute Chamber finds that the requirement of necessity is not respected in this case. If the stated interest is to prevent individuals from receiving the same sacrament (particularly baptism) twice, but this proves to be practically unverifiable, then the processing is not necessary, since, as indicated, this processing is not appropriate to reliably establish whether a person has already been baptized. While it is certainly possible to obtain confirmation of the status of the individual concerned, with their cooperation, this is not an infallible method that always guarantees certainty regarding the status of the individual in relation to certain sacraments. It is indeed always possible that the individual concerned may not be located or that they may deliberately conceal certain aspects (in bad faith).

126. Furthermore, the Dispute Chamber believes that more personal data is retained than is strictly necessary, particularly when the individual concerned has already expressed a wish to exit. For example, it is not necessary to retain the personal data of the godfather and godmother or to note the exit date when the purpose is to verify whether a sacrament has been administered. According to the Dispute Chamber, there should at least be a streamlined version of the "profile" of an individual concerned, which would no longer contain all personal data. This is even more pertinent when the individual concerned has submitted a request to the data controller in accordance with Article 17 of the GDPR. The Dispute Chamber therefore considers that when an individual concerned is no longer a member of the Roman Catholic Church, it is not necessary to retain all personal data. Currently, all personal data is retained permanently, but this is not in accordance with the principle of data minimization and proportionality. In principle, this can only be relevant to determine whether an individual concerned has already received certain sacraments.

127. The Dispute Chamber therefore finds that the requirement of necessity is not fulfilled and that there is also a violation of the principle of purpose limitation (Article 5.1.b of the GDPR) and the principle of data minimization (Article 5.1.c of the GDPR).

Decision on the Merits 169/2023 — 37/60

128. The balancing test. Finally, in order to invoke legitimate interest, a balancing must be conducted between the interest of the data controller and the fundamental freedoms and rights of the data subjects. The balancing depends on the particular circumstances of a specific case and the rights of the complainants under Articles 7 and 8 of the Charter of Fundamental Rights of the European Union

concerning the protection of private life and data protection.⁴⁹ Specifically, it is necessary to assess the impact of the processing on the data subject(s) and whether they are not disproportionately affected.⁵⁰

129. According to Recital 47 of the GDPR, the existence of a legitimate interest should be subject to careful assessment. To determine whether the legitimate interest outweighs the interest or the fundamental freedoms and rights of the data subject, it is particularly important to take into account the reasonable expectations based on their relationship with the data controller⁵¹, as well as the consequences of the processing for the data subject⁵².

130. In this regard, the Contentious Chamber considers it appropriate to distinguish between processing activities. There is thus a difference between the reasonable expectations of data subjects who have been baptized and are still members of the Roman Catholic Church, on the one hand, and those of data subjects who have expressly indicated that they no longer wish to be part of the Roman Catholic Church, on the other hand.

131. The Contentious Chamber exclusively assesses the reasonable expectations of the data subjects themselves and not those of third parties.⁵³ In its conclusions, the defendant refers to the collective aspect of the right to religion. The right to religion also includes the right to freely practice a religion by all active members within the religious community. For example, they should be able to ascertain with certainty whether a person has been baptized or whether they have not previously married in front of the Roman Catholic Church. However, the Contentious Chamber emphasizes that in this assessment, under the text of Article 6.1 of the GDPR, only the reasonable expectations of the data subjects should be taken into account, and not those of third parties. It will therefore not examine the collective reasonable expectations of the members of the Roman Catholic Church.

49 CJEU, Judgment of November 24, 2011, *Asociación Nacional de Establecimientos Financieros de Crédito*, C-468/10 and C-469/10, EU:C:2011:777, para. 51; EDPB Guidelines 3/2019, paras. 32-35.

50 WP29, Opinion 06/2014 on the concept of legitimate interest, p. 41.

51 EDPB Guidelines 3/2019, para. 36.

52 CJEU, Judgment of December 7, 2023, *Schufa*, Joined Cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, para. 78.

53 This is also confirmed in the CJEU judgment of December 7, 2023, *Schufa*, Joined Cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, para. 87.

Decision on the Merits 169/2023 — 38/60

132. The complainant explains that it is unreasonable that, if he was unable to decide for himself whether to be baptized or not, his personal data should then be retained for the rest of his life in the parish registers, even though he has indicated that he no longer wishes to be part of the Roman Catholic Church.

133. The defendant refutes this by arguing that according to the constant doctrine of the Roman Catholic Church, baptism is the foundation of all Christian life and cannot therefore be repeated. It would be obvious, according to the defendant, that personal data would be processed during a baptism, so that the reasonable expectations would not go in another direction either.

134. The defendant further adds that baptism registers should not be considered as lists of members of the Roman Catholic Church. It is therefore absolutely not possible to be removed from these registers. The baptism register or the mention of a baptism therein would function as a register of notarized acts, with the priest acting as an agent of the Church, in the presence of witnesses, in a public act for the religious community.⁵⁴ The defendant emphasizes that this is a public event that must be documented for historical and archival purposes. It is therefore consistent with the reasonable expectations of the baptized that their personal data cannot simply be erased from the parish registers.

135. The Contentious Chamber notes that the complainant has never been able to decide for himself whether his personal data should be processed or not, given that he was baptized at a very young age. On this point, however, the Contentious Chamber must align itself with the opinion of the defendant and note that parental authority (cf. Articles 372 et seq. of the Old Civil Code⁵⁵), as well as the possibility for parents or guardians to express their consent on behalf of their children (see Article 8 of

the GDPR), facilitates the fact that parents or guardians make decisions on behalf of minors. Although the processing of personal data is not based in this case on consent in accordance with Article 6.1.a) of the GDPR, this clearly illustrates that according to the legislator, the decision-making competence regarding the personal data of minors lies with the parents or guardians.

54 The French Court of Cassation confirmed in 2014 that a Catholic baptism is not a private event but a public one: Court of Cassation, 1st Civ. 19/11/2014, appeal no. 13.25156.

55 Article 372 ACC: "The child remains under the authority of his father and mother until his majority or emancipation."

Decision on the Merits 169/2023 — 39/60

136. Regarding the reasonable expectations of the individuals concerned, it is clear from the present file that former members of the Roman Catholic Church who specifically requested their exit and the exercise of their right in accordance with Article 17 of the GDPR could reasonably expect that the personal data collected about them would no longer be included in the baptism registers. In this regard, account must also be taken of the information that has been provided to the individuals concerned, which should give them an idea of the scope or duration of the processing. Given that breaches have already been identified regarding the defendant's obligation to inform, the Contentious Chamber must find that the reasonable expectations of the complainant do not imply that their collected personal data should be retained for life, particularly if they have exited the Roman Catholic Church. This is all the more true given that this unlimited retention period was not communicated at the time of the collection of personal data.

137. Furthermore, processing must always be proportional. To this end, there must be substantial and compelling reasons that prevail over the interests, rights, and freedoms of the individuals concerned. A balance must be struck between the legitimate interest of the data controller, namely to prevent identity fraud and a "double baptism," and the right to the protection of personal data of the individuals concerned. The Contentious Chamber concludes that although the initial purpose of the processing is legitimate, the lifetime retention of the complainant's personal data collected in this case is disproportionate. When an individual indicates that they are no longer a member of the Roman Catholic Church, the Contentious Chamber believes that this justification is insufficient to continue processing the complainant's personal data unconditionally and is therefore disproportionate.

138. Although it is possible that a former member may decide to rejoin the Roman Catholic Church or receive (again) sacraments, the risk that this will actually occur is low. Such a scenario does not justify the continued processing of all previously collected personal data from all individuals who have left the Church and have expressly distanced themselves from the Roman Catholic Church. All the more so, such reasoning does not hold when this express distancing leads to additional processing of personal data by the addition of an annotation (see above). This results in the processing of a greater amount of personal data, the sensitivity of which may be even higher than originally. The Contentious Chamber believes that the continuation of this processing disproportionately violates the fundamental rights and freedoms of the complainant, anchored in Articles 7 and 8 of the Charter.

Decision on the Merits 169/2023 — 40/60

139. The Contentious Chamber deduces from the above that the defendant acts in violation of Articles 5.1.a) and 6.1.f) of the GDPR and does not have a legal basis for processing under Article 6.1 of the GDPR, given that, in practice, the processing does not pass the necessity test or the balancing test, concerning the further processing of personal data once the individual is no longer a member of the Roman Catholic Church.

140. In this regard, the Contentious Chamber does not exclude that if sufficient attention is paid to the principle of data minimization and proportionality, with the necessity and balancing tests potentially passed successfully, it may be possible for it to adopt a different viewpoint. Nevertheless, the Contentious Chamber finds based on the defendant's conclusions that Article 6.1.f) of the GDPR cannot currently be invoked. Since the defendant does not mention other legal bases under Article 6 of the GDPR, these are not examined by the Contentious Chamber.

141. The defendant also mentions purposes of historical archiving. Although the Contentious Chamber acknowledges that baptism records may have historical value, it believes that the initial motivation for recording the baptism can be fully framed within the administration of sacraments to believers. Archiving and potential retention for historical purposes constitute only further processing that can only occur if there is, in the first instance, a lawful basis for the processing. The Contentious Chamber believes that this is not the case in the present instance.

II.4.2. Special Categories of Personal Data

142. If processing of special categories of personal data in accordance with Article 9.1 of the GDPR is carried out, the data controller must designate a legal basis in accordance with Article 6 of the GDPR as well as a justification for the exception under Article 9.2 of the GDPR.

143. Article 9.1 of the GDPR provides a general prohibition under which "the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited."

Decision on the Merits 169/2023 — 41/60

144. The second paragraph of this provision reiterates exceptional grounds that still allow for the processing of particular categories of personal data. It is the responsibility of the data controller to demonstrate that such an exceptional ground applies.

145. The Contentious Chamber will examine below whether, in this case, the exceptional grounds of Article 9.2 of the GDPR that are put forward can apply to the processing.

II.4.3. Processing of personal data of members (former members) of a religious organization

146. The second paragraph of Article 9 of the GDPR provides for exceptional grounds to the prohibition set out in the first paragraph. Thus, under Article 9.2.d) of the GDPR, the first paragraph does not apply if "the processing is carried out, within the framework of their legitimate activities and subject to appropriate safeguards, by a foundation, an association, or any other non-profit organization pursuing a political, philosophical, religious, or trade union purpose, provided that such processing relates exclusively to the members or former members of that organization or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that organization without the consent of the data subjects."

147. The complainant asserts that he could not be considered a former member, given that he never expressed his agreement to membership. As previously indicated by the Contentious Chamber, it considers this argument to be invalid. The parents or guardian have decision-making authority on this matter, and the complainant has therefore been a member of the Roman Catholic Church by receiving the sacrament of baptism.

148. The Contentious Chamber believes that the defendant can legitimately rely on Article 9.2.d) of the GDPR for the processing of special categories of personal data. This provision specifies that the processing activities must be limited to the legitimate activities of the organization. This means that the processing must be directly related to the religious activities of the organization.

149. The defendant indicates that parish registers are used to monitor the baptismal status of members of the Roman Catholic Church and to make annotations if other sacraments are administered. The Contentious Chamber considers this to be adequate within the framework of legitimate activities. The Contentious Chamber emphasizes in this regard that, in principle, the test to determine whether an activity is legitimate is comparable to the test regarding the legitimacy of an interest, in accordance with Article 6.1.f) of the GDPR. The activities referred to here are therefore legitimate.

150. However, it is recommended to reconsider whether the recording of personal data of former members still falls within the legitimate activities of an organization, even when these data subjects

have explicitly indicated that they no longer wish to have any connection with the Roman Catholic Church. The defendant indicates that the retention of personal data remains relevant in case the data subjects decide to reverse their decision to leave the ecclesiastical community. It adds that each diocese has already experienced cases where a person who left the Church subsequently rejoined it (the Diocese of Ghent would have about ten such cases). If this is the case, the previously added annotation is again appropriate so that it is clear that the data subject wishes to be a member of the Roman Catholic Church again. Given that this processing still falls within the possibility of preventing identity fraud, even among former members who may subsequently rejoin the religious community, this processing should still be legitimate, according to the defendant.

151. Since Article 9.2.d) of the GDPR expressly provides an exceptional ground for former members, the Contentious Chamber concludes that it must remain possible, even after voluntary exit by members, to process their personal data. In this regard, it should be emphasized that the exceptional grounds of Article 9.2 of the GDPR must be interpreted strictly. The Contentious Chamber therefore believes that the terms "legitimate activities" must also be interpreted restrictively. Article 9.2.d) of the GDPR does indeed refer to "former members," but it should be read in its proper scope. It is thus possible, for example, that several issues still need to be resolved regarding a former member (such as the settlement of a dispute), which require a temporary retention of processing for a certain period after membership. However, this provision cannot serve as a basis for the retention of sensitive personal data collected during membership against the express will of the data subject for a long period, and even less so for life. In other words, the Contentious Chamber does not consider that the mere retention of personal data of former members can be classified as a "legitimate activity" of the Roman Catholic Church.

Decision on the merits 169/2023 — 43/60

152. Furthermore, the exception reason set out in Article 9.2.d) of the GDPR provides for a balancing of interests. This reason explicitly includes the restriction that such processing is only possible within the framework of the "legitimate activities" of an entity as stated in Article 9.2.d) of the GDPR. Although the prevention of identity fraud and the correct administration of sacraments may be seen as a legitimate interest of the defendant, the Contentious Chamber believes that the permanent retention of personal data of individuals who have left the Church does not fall under the designation of "legitimate activities" when there is an express exit and a request for deletion has also been made.

153. This must also be read in conjunction with the principles of Article 5 of the GDPR. The Contentious Chamber particularly emphasizes the principle of data minimization (Article 5.1.c) of the GDPR), according to which personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.

154. In light of the above, the Contentious Chamber concludes that it cannot be entirely ruled out that the defendant could rely on Articles 6.1.f) and 9.2.d) of the GDPR for the processing of personal data of former members. However, it concludes that these two grounds cannot be used as a legal basis for the ongoing permanent processing of personal data of individuals who have left the Church, for example, by retaining them in full in a baptismal register, as is the case here.

155. In this regard, the Contentious Chamber leaves open the question of whether, to the extent that it adopts a proportionate and data-minimizing approach, the defendant may continue to process certain personal data. Indeed, the interest of the defendant is legitimate.⁵⁹ Nevertheless, the Contentious Chamber is convinced that permanent processing, such as that which occurs under current practice, cannot be justified on the basis of Articles 6.1.f) and 9.2.d) of the GDPR.

in the exception reason. The legislator's intention was therefore also to assert the legal basis for former members. Article 9 is based on Article 8 of Directive 95/46/EC (see: proposal for a regulation on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation)).

⁵⁹ See points 107 et seq. of this decision.

Decision on the merits 169/2023 — 44/60

II.4.4. Archiving in the public interest or for scientific/historical research

156. The principle of purpose limitation (Article 5.1.b) of the GDPR) requires that the purpose of processing be defined at the time the data is collected and prescribes as a starting point that subsequent processing must not exceed the initial purpose. This rule is specified and extended by recognizing that the scope of a defined purpose includes processing that is "compatible" with the initially stated purpose. Article 6.4 of the GDPR contains the elements that the data controller must consider before such subsequent processing takes place.

157. With regard specifically to the subsequent processing of personal data after the individual concerned has left the Roman Catholic Church, the purpose of archiving in the public interest or for scientific/historical research can also be analyzed. In its reply conclusions, the defendant indicates that the processing also takes place on the basis of Article 6.1.f) of the GDPR in combination with Article 9.2.j) and Article 89.1 of the GDPR. Although at the hearing on November 27, 2023, the defendant put forward Article 6.1.f) in combination with Article 9.2.d) of the GDPR as legal bases for data processing, the Contentious Chamber will examine whether it is possible to process personal data for the purpose of archiving in the public interest or for scientific research, also because in previous viewpoints, the defendant has also mentioned these bases.

158. Primary use. First, the Contentious Chamber examines whether the continuous retention of baptismal records is possible on the basis of Articles 6.1.f) and 9.2.j) of the GDPR, if the personal data is collected directly for research purposes (primary use).⁶⁰ If the personal data in the baptismal records is collected for the purpose of archiving in the public interest, scientific, or historical research, this constitutes a distinct processing activity, independent of the processing carried out for the correct administration of sacraments. However, the Contentious Chamber must note that this is not the case. The personal data is indeed initially collected for the purpose of having a record of the sacraments administered to the individual concerned in order to prevent identity fraud.

60 EDPB Guidelines 3/2020 of April 21, 2020, on the processing of data concerning health for scientific research purposes in the context of the COVID-19 pandemic.

Decision on the Merits 169/2023 — 45/60

159. According to the Contentious Chamber, the archiving of baptism registers in the public interest can no longer be considered. Although the defendant indicates that the baptism registers served a general utility in the past, they have, according to her, been replaced by the registers of the State Archives. Indeed, if the registers are of public interest, they must also be usable in view of that public interest. However, the Contentious Chamber notes that the defendant acknowledges that the registers are not public, are not accessible to third parties, and are furthermore not shared with other entities. This indeed falls within the framework of the confidentiality principle that must also be respected. The Contentious Chamber finally considers that it is not possible for a private entity, such as the Roman Catholic Church, to maintain archives in the public interest without having a legal obligation to do so under Union law or national law.⁶¹ Finally, the Contentious Chamber finds that the defendant does not demonstrate what specific public interest is served by the archiving. The mere fact of having an archive is not sufficient, according to the Contentious Chamber, to demonstrate that it concerns archiving in the public interest.

160. Furthermore, the processing should also meet the conditions set out in Article 9.2.j) of the GDPR, given that it concerns a particular category of personal data. The Contentious Chamber notes in points 166 et seq. below that these conditions are not met.

161. Secondary Use. The Contentious Chamber believes that the initial purpose of collecting personal data is to prevent identity fraud and not archiving in the public interest or for scientific/historical research per se. However, the GDPR provides for the possibility of further processing of personal data if these purposes are compatible with the purpose for which the personal data was initially collected.⁶²

61 The archives would be transferred to the State Archives after one hundred years, but this transfer is based on an agreement between the Belgian State and the Roman Catholic Church. Therefore, there is no legally binding obligation.

62 See Article 6.4 of the GDPR.

162. Recital 50 specifies that further processing for archiving purposes in the public interest, for scientific or historical research, or for statistical purposes should be considered a compatible lawful processing operation. It further emphasizes that the initial processing must comply with all requirements related to the lawfulness of the initial processing. Since this is not the case here⁶³, further processing cannot be considered either. Nevertheless, the Contentious Chamber checks whether, in the event that there is indeed lawful processing because it has made adaptations to current practice, the defendant could invoke Article 6.4 of the GDPR to legitimize the archiving of baptism registers. Indeed, besides the defendant's argument that the baptism registers serve to verify which sacraments have already been administered to a concerned person, she also indicates that the archiving of personal data in the baptism registers takes place in the public interest.

163. As already explained, the Contentious Chamber believes that archiving in the public interest is not possible in this case.⁶⁴

164. The defendant also claims that scientific research is conducted using the baptism registers.⁶⁵ This would include, for example, genealogical research.⁶⁶ The defendant does not provide concrete examples of such research.

165. Although this may be considered a compatible purpose, other provisions of the GDPR must still be taken into account. The processing must therefore be proportional and minimize data, in the spirit of Article 89 of the GDPR, and the researcher's interest must still be weighed against the fundamental rights and freedoms of the concerned individual. The Contentious Chamber believes that the continuous retention of personal data of individuals who have left the Church, as it currently occurs, after the concerned individual has indicated that they no longer adhere to the Roman Catholic Church and, furthermore, that they wish to be removed, cannot be considered proportional and minimizing data. This is even more the case when any potential future research remains to be determined and no technical or organizational measures have been taken to ensure compliance with the principle of data minimization. The Contentious Chamber emphasizes that many research opportunities are still possible without certain personal data, by anonymizing or pseudonymizing them.

63 See points 103 et seq. (particularly point 139) of this decision.

64 See point 159 of this decision.

65 Recital 51 of the GDPR.

66 Recital 160 of the GDPR expressly states that this also falls under the terms 'scientific research'.

166. Furthermore, further processing in accordance with Article 6.4 of the GDPR relates to the legal basis required under Article 6.1 of the GDPR. Since this concerns a category of sensitive personal data, an exception ground under Article 9.2 of the GDPR must still apply. The defendant then invokes Article 9.2.j) of the GDPR. This provision allows for processing if it is necessary for archiving purposes in the public interest, for scientific or historical research, or for statistical purposes, in accordance with Article 89.1 and based on Union law or the law of a Member State, with such processing being proportionate to the objective pursued, respecting the essence of the right to data protection, and providing appropriate and specific measures to safeguard the fundamental rights and interests of the data subject.

167. Regarding the safeguards under Article 89 of the GDPR that have been taken in this case by the defendant, the Contentious Chamber finds them insufficient. The Contentious Chamber considers that it is possible to work in a manner that better guarantees data minimization (such as through the anonymization or pseudonymization of certain personal data).

168. Furthermore, there is no basis in Union law or the law of the Member States. The defendant has referenced in its latest explanations a "decision of the Conference of Bishops of Belgium regarding the conservation and consultation of diocesan archives," which states that sensitive documents in terms of privacy may be consulted in accordance with the law of December 21, 2018, concerning the

consultation of civil status registers and population registers for genealogical, scientific, or historical purposes. This law is executed by the royal decree of March 17, 2021, concerning research for genealogical purposes in civil status records and granting access to the BAEC to the General Archives of the Kingdom and State Archives. However, the Contentious Chamber must note in this regard that these legislative instruments do not apply to diocesan archives.

67 Law of December 21, 2018, containing various provisions regarding justice, M.B. December 31, 2018, arts. 166-198. See also the law of June 18, 2018, containing various provisions regarding civil law and provisions aimed at promoting alternative dispute resolution, M.B. July 2, 2018.

68 Database of Civil Status Acts.

69 Royal decree of March 17, 2021, concerning research for genealogical purposes in civil status records and granting access to the BAEC to the General Archives of the Kingdom and State Archives, M.B. March 31, 2021 (ed. 1).

Decision on the merits 169/2023 — 48/60

169. In its conclusions, the defendant states that the CIC constitutes a legislative measure in accordance with recitals 41 of the GDPR. This recital indeed specifies that regulatory measures may be taken under a delegation of power, so that a royal or ministerial decree, for example, can also be considered as such a legislative measure within the meaning of the GDPR. The CIC cannot be considered as such a legislative measure, despite its precision and clarity. Therefore, no obligation for processing set out in Union law or the law of the Member States applies in this case. The CIC also does not provide a basis under Union law or the law of the Member States in accordance with Article 9.2.j) of the GDPR.

170. The aforementioned provision clearly provides for a balancing with the right to the protection of personal data of the data subjects. The Contentious Chamber believes that the explicit mention of an obligation to balance as set out in Article 9.2.j) of the GDPR (and not in the other provisions of Article 9.2 of the GDPR) demonstrates that it is appropriate to assign a correct value to the right to the protection of personal data when weighed against the further processing of personal data for archiving in the public interest or for historical/scientific research. In such a context, proportionality often requires that the processing of personal data be strictly necessary and minimize as much as possible the number of data to be processed. This strict balancing implies, in accordance with the previous viewpoint of the Contentious Chamber, that further processing of the available personal data of members and former members of the Roman Catholic Church, for the purposes of archiving in the public interest or for historical/scientific research, is disproportionate. This is certainly the case when no pseudonymization and anonymization techniques are used.

171. The Contentious Chamber therefore concludes that the defendant cannot invoke Article 6.1.f) and Article 9.2.j) of the GDPR, neither for the primary use of personal data nor when it falls within the framework of secondary processing in the public interest or for scientific/historical research purposes.

II.5. Rights of the data subjects

172. In accordance with Chapter III of the GDPR, the data subject has the opportunity to exercise certain rights with respect to the data controller.

70. L. GEORGIEVA and C. KUNER, "Article 9 Processing of special categories of personal data," in C. KUNER, et al., (eds.), *The EU General Data Protection Regulation (GDPR). A Commentary*, Oxford University Press, 2020, 365 et seq.

71 See points 128 et seq. of this decision.

Decision on the Merits 169/2023 — 49/60

II.5.1. Right to Rectification

173. Article 16 of the GDPR states that a data subject has the right "to obtain from the controller, without undue delay, the rectification of inaccurate personal data concerning him or her. [...]"

174. The complainant states that the recording of his personal data in the baptismal registers is inaccurate and is therefore contrary to Article 5.1(d) of the GDPR. His entry into the Roman Catholic

Church would indeed have occurred when he was 6 days old, and he could not have validly entered at that age. By recording his personal data as such in a baptismal register, it would constitute inaccurate personal data. Furthermore, he claims that his request for the deletion of his personal data from the baptismal register is not a request for exit, given that there was no entry to begin with. He therefore requests a correction of the baptismal register by means of the deletion of his personal data.

175. In its conclusions, the defendant refutes the above by stating that the baptism took place, and that this was done at the express request of the complainant's parents. The fact that the complainant considers himself a member of the Roman Catholic Church or not is not relevant, given that the entry in the baptismal register is a mere acknowledgment of the fact that the baptism took place, implying that the complainant has indeed become a member of the Roman Catholic Church.

176. In this regard, the Contentious Chamber finds that the personal data is accurate. The (in)accuracy of personal data must be assessed in relation to the specific purposes of their processing.⁷² In this case, these purposes concern the recording of the baptism ceremony for the subsequent tracking of any other sacraments, as well as to prevent a second baptism (i.e., identity fraud). The parents have the decision-making authority to integrate their minor children into a religious association.⁷³ Following the administration of the sacrament of baptism, the complainant has in this case become a member of the Roman Catholic Church. In light of these elements, the Contentious Chamber finds that no inaccurate personal data of the complainant has been processed, since both his baptism and his request for exit have indeed taken place, and it cannot be established from the case file that any material errors have crept into the recorded personal data.

⁷² CJEU, Judgment of May 20, 2017, Nowak, C-434/16, ECLI:EU:C:2017:994, para. 49.

⁷³ See point 135 of this decision.

Decision on the Merits 169/2023 — 50/60

177. There is therefore no violation of Article 5.1(d) of the GDPR, and the complainant cannot exercise his right to rectification against the defendant, in accordance with Article 16 of the GDPR.

II.5.2. Right to Erasure

178. The complainant states in his conclusions that he is not exercising his right to erasure, but rather his right to rectification. However, if the complainant's request is granted, it would de facto involve the erasure of his personal data, given that he initially requested a "deletion" of all his personal data. The Contentious Chamber therefore also examines Article 17 of the GDPR (in conjunction with Article 21 of the GDPR).

179. Under Article 17 of the GDPR, the data subject has, in principle, a right to erasure, which means that he or she has the right to obtain from the controller the erasure of personal data concerning him or her. The first paragraph of Article 17 of the GDPR lists a limited number of situations in which the controller is obliged to comply with a data subject's right to erasure.

180. In this case, the Contentious Chamber finds it relevant to examine the cases listed in Article 17.1(c) and (d) of the GDPR.

181. Objection. Article 17.1(c) of the GDPR grants data subjects the right to obtain the immediate erasure of personal data concerning them when they object to the processing in accordance with Article 21.1 of the GDPR and there are no overriding legitimate grounds for the processing. If applicable, the controller must also notify the erasure request to any recipient to whom their personal data have been disclosed.⁷⁴

182. Article 21 of the GDPR states that a data subject has the right to object at any time, on grounds relating to his or her particular situation, to the processing of personal data concerning him or her based on Article 6.1(f) of the GDPR. Under Article 21 of the GDPR, the burden of proof is reversed so that the controller must demonstrate that there are overriding legitimate grounds for the processing which prevail over the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims. If the controller fails to do so, they must cease the processing, and the personal data may be erased in accordance with Article 17.1(c) of the GDPR.

⁷⁴ Article 19 of the GDPR.

Decision on the Merits 169/2023 — 51/60

183. The defendant argues that the prevention of identity fraud concerning baptism (given that baptism can only be administered once) should be considered a legitimate overriding reason for processing that prevails over the interests, rights, and freedoms of the individual concerned. However, the Contentious Chamber finds that if the individual concerned has expressly indicated that they no longer wish to be part of the Roman Catholic Church, the aforementioned legitimate overriding reason, at least regarding several personal data processed in the baptismal register, is no longer proportionate to the right to the protection of personal data of the individual concerned. Furthermore, the defendant emphasizes that the act of rendering baptism data unreadable is an act that cannot be legally performed by the priest or their assistant according to the applicable canon law. The Contentious Chamber must note in this regard that the applicable provisions of the CIC do not contain an express prohibition.⁷⁵

184. The data controller therefore fails to convince the Contentious Chamber of the existence of such legitimate overriding reasons for the further processing of all personal data as those included in the baptismal register.⁷⁶

185. This is even more true when considering that the necessity and balancing test of Article 6.1(f) of the GDPR is not met.⁷⁷

186. Unlawful Processing. Moreover, Article 17.1(d) of the GDPR provides for the possibility of obtaining the erasure of personal data if they have been processed unlawfully. The Contentious Chamber has previously justified the reason why the processing in this case is unlawful.⁷⁸

187. It therefore considers that Article 17.1(d) of the GDPR can be invoked and that the data controller must erase the relevant data from the baptismal register as soon as possible.

75 Canon 535 of the CIC outlines the obligations of priests regarding baptismal registers. It does not contain an express prohibition on deletion or erasure. See the decision of the Irish DPC (IN-19-7-6) of February 27, 2023, point 378.

76 See also points 127, 137-139 of this decision.

77 See points 115 et seq. of this decision.

78 See point 139.

Decision on the Merits 169/2023 — 52/60

188. However, this does not exclude *prima facie* that the data controller may still process, in one way or another, the strictly necessary personal data of former members, in order to prevent identity fraud concerning baptism (given that baptism can only be administered once) and to record the administration or non-administration of any other sacraments. However, the current processing of personal data in the baptismal registers cannot currently be considered legitimate. Given that the principle of proportionality and data minimization is not respected, the complainant retains the right to object.

189. Exceptions to Article 17.1 of the GDPR. A request for erasure in accordance with Article 17.1 of the GDPR does not have to be executed by the data controller if an exception under the third paragraph of this article applies. The defendant refers in this regard to the exception set out in Article 17.3(d) of the GDPR. This provision states that such an exception exists insofar as the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes in accordance with Article 89.1, to the extent that the right referred to in paragraph 1 is likely to make it impossible or seriously compromise the achievement of the objectives of that processing.

190. However, the Contentious Chamber does not consider that this exception applies. As already stated in point II.4.4. of this decision, it does not believe that there is a necessity to continue the retention of baptismal records in the public interest or for scientific/historical research purposes. Furthermore, the erasure of the baptismal records of individuals who have left the Church and have expressly requested it does not seem to seriously compromise the public interest or scientific/historical research.

II.5.3. Facilitation of the Exercise of Rights by the Data Controller

191. The Contentious Chamber has previously noted a failure regarding the facilitation of the exercise

of rights by the defendant.⁷⁹ This particularly concerns the obligation to inform the individuals concerned as set out in Article 12 of the GDPR⁸⁰, read in conjunction with the principle of transparency of Article 5.1(a) of the GDPR.

⁷⁹ See points 88 et seq. of this decision.

⁸⁰ Articles 12.1, 12.2, 12.3, and 12.4 of the GDPR.

Decision on the Merits 169/2023 — 53/60

II.6. Conclusion

192. This case essentially concerns the complainant's request to erase personal data concerning him from the files of the Roman Catholic Church, particularly from the baptismal register. The complainant opposes the permanent processing of his data, noting that he is no longer part of the ecclesiastical community.

193. The Contentious Chamber concludes that this processing of personal data is unlawful. It constitutes a violation of Articles 5.1.a) through Article 6.1.f) of the GDPR, as well as Articles 5.1.b) and 5.1.c) of the GDPR.

194. A significant part of the defense concerns the legal position of the Roman Catholic Church as a religious community (with reference to Articles 19 and 21 of the Constitution, Article 17 of the TFEU, Articles 9 and 11 of the ECHR, and the GDPR). The Contentious Chamber concludes that the processing of personal data for the purpose of expressing the fundamental rights and freedoms granted by these provisions can be considered a legitimate interest, as referred to in Article 6.1.f) of the GDPR.

195. However, this does not prejudice the other obligations of the defendant regarding the processing of personal data. The provisions of Articles 5 and 6 of the GDPR remain valid. According to the Contentious Chamber, the fact that the data controller is obliged to process personal data on the grounds that it is included in canon law does not constitute a reason to exempt itself from the GDPR.⁸¹

196. The Contentious Chamber takes note of the data controller's viewpoint, which refers to Article 6.1.f) of the GDPR as the legal basis for the processing. Under this provision, the processing of personal data may be carried out for the legitimate interests pursued by the data controller or by a third party, unless the interests or fundamental rights and freedoms of the data subject requiring protection of personal data prevail. In this regard, the Contentious Chamber finds a failure in both the necessity test and the balancing of interests test. The proposed processing is indeed not appropriate to achieve the intended interest and does not comply with the principles of purpose limitation and data minimization (Articles 5.1.b) and 5.1.c) of the GDPR).

⁸¹ Regarding the competence of the Contentious Chamber concerning the relationship between the law of the Church and the State, see point II.1 of this decision.

Decision on the Merits 169/2023 — 54/60

197. The method submitted to the Contentious Chamber is therefore not sufficiently adequate in light of the protection of personal data and does not allow the defendant to retain the personal data of former members for life, who have expressly expressed their wish to exercise their right to erasure, to achieve the intended purposes (to prevent identity fraud). In this regard, the Contentious Chamber does not rule on whether these purposes can be achieved by other methods of data processing, in accordance with the provisions of the GDPR. The Contentious Chamber does not exclude that when sufficient attention is given to the principles of data minimization and proportionality, and the necessity and balancing tests are potentially passed successfully, it may adopt a different viewpoint.

198. Furthermore, the Contentious Chamber has verified whether the defendant could invoke an exception under Article 9.2 of the GDPR, given that this case involves the processing of a particular category of personal data as referred to in Article 9. To speak of lawful processing of a particular category of personal data, the conditions of Articles 6 and 9 must be cumulatively fulfilled (see in particular the Meta judgment of the Court of Justice⁸²). The Contentious Chamber believes that the defendant can invoke Article 9.2.d) of the GDPR concerning the permanent further processing of personal data of former members. Indeed, the GDPR expressly includes the category of "former" members in Article 9.2.d), whereas this was not the case in Directive 95/46/EC. According to the

Contentious Chamber, the term "legitimate activities" in this provision implies a balancing of interests with the right to the protection of personal data. Again, the Contentious Chamber must find that the conditions of proportionality and necessity are not met in this regard.

199. To the extent that the defendant invokes the exception under Article 9.2.j) of the GDPR, the Contentious Chamber believes that it cannot apply.

200. In light of the above, the Contentious Chamber believes that the complainant can indeed legitimately invoke Article 17.1.c) and d) of the GDPR to obtain the erasure of his personal data. The defendant is therefore acting in violation of Articles 12.2 and 12.4 of the GDPR, as well as Article 17.1 of the GDPR.

82 CJEU, Judgment of July 4, 2023, Meta, C-252/21, ECLI:EU:C:2023:537, para. 90.
Decision on the Merits 169/2023 — 55/60

201. Furthermore, the Contentious Chamber believes that the exception under Article 17.3.d) of the GDPR that is invoked does not apply. Consequently, the Contentious Chamber considers that the data controller is not properly responding to the complainant's request to exercise their right to erasure, due to the unlawful nature of the processing (Article 17.1.d) of the GDPR). This means that the personal data of the complainant must be deleted from the baptism register.

202. The Contentious Chamber is aware that it is thus acting against the directives of canon law. Nevertheless, it wishes to emphasize that the CIC does not contain an express prohibition on deletion.⁸³

203. Moreover, the Contentious Chamber notes that the individuals concerned have not been informed in accordance with the obligations of the GDPR (Article 5.1.a) and Article 12 of the GDPR). Not only was the complainant (or their parents or guardians) not adequately informed prior to the processing, meaning they were not informed of the duration of the processing as well as the specific purposes and legal grounds, but they also did not receive information from the data controller regarding the possibility of exercising their right to erasure (Article 12.4 of the GDPR).

204. Finally, the Contentious Chamber emphasizes that this decision concerns the processing of personal data by the complainant, but it may have broader implications. The Contentious Chamber therefore highlights:

- a. that the decision concerns the processing of the complainant's baptism data and does not address the question of whether everyone has the right, in all circumstances, to have their personal data deleted from a baptism register;
- b. that constitutional issues regarding the relationship between the Church and the State have not been analyzed;
- c. that it can be expected that the Church will take the necessary measures under the principle of accountability (Articles 5.2 and 24 of the GDPR) to comply with all obligations of the GDPR.

⁸³ Canon 535 of the CIC does not state anywhere that deletion is prohibited.

Decision on the Merits 169/2023 — 56/60

III. Corrective Measures and Sanction

III.1. The Severity of the Violation

205. The defendant processes personal data on a large scale within the Diocese of Ghent, and this same practice and operation extend throughout the entire Belgian territory.

206. The concrete negative consequence or "risk" for the complainant is that all data collected about them remains permanently in registers that associate them with a specific religion, against their explicit will. Given that this concerns a category of sensitive personal data under Article 9 of the GDPR, its serious nature should be emphasized.

207. However, it should be mentioned that the registers are not freely accessible to the public and are only consulted sporadically (and only at the request of the individuals concerned).

III.2. Corrective Measures

208. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;

- 3° pronounce a suspension of the ruling;
 - 4° propose a settlement;
 - 5° issue warnings and reprimands;
 - 6° order compliance with the requests of the individual concerned to exercise their rights;
 - 7° order that the interested party be informed of the security issue;
 - 8° order the freezing, limitation, or temporary or permanent prohibition of the processing;
 - 9° order compliance of the processing;
 - 10° order the rectification, restriction, or erasure of the data and notification of such to the recipients of the data;
 - 11° order the withdrawal of the accreditation of certification bodies;
 - 12° impose penalties;
 - 13° impose administrative fines;
- Decision on the merits 169/2023 — 57/60

- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° forward the file to the Public Prosecutor of the King of Brussels, who will inform it of the follow-up given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

209. As the Litigation Chamber has found that despite the complainant's request for deletion, the ongoing processing of his personal data in the baptism registers constitutes behavior that violates Articles 6.1 and 9 of the GDPR, corrective measures must be taken against the defendant. Furthermore, the Litigation Chamber has found that the information obligations under Article 13 of the GDPR have not been respected. The defendant is also acting in violation of Article 17 of the GDPR, read in conjunction with Article 12 of the GDPR.

210. In the context of effective legal protection under Article 47 of the Charter of Fundamental Rights of the European Union and the effective application of the regulation that the legislator pursues with the GDPR, it is essential to reprimand the defendant on this point.

211. For these reasons, the Litigation Chamber considers it appropriate to reprimand the defendant for the lack of clear information to the data subjects (notably regarding the exercise of their rights in accordance with Chapter III of the GDPR) and the defendant's refusal to comply with the complainant's request for deletion. To determine the sanction, the Litigation Chamber takes into account the fact that the defendant has always cooperated with the Litigation Chamber. The Litigation Chamber therefore decides to impose only corrective measures on the defendant.

Decision on the merits 169/2023 — 58/60

212. Given the specific context of the case, the Litigation Chamber believes there is no reason to impose a fine on the defendant. In this regard, the Litigation Chamber takes into account the relevant constitutional and European provisions that guarantee the freedom of organization for religious groups as well as the freedom of religion and association. The fact that the defendant invokes these provisions does not mean that it escapes corrective sanctions. However, the imposition of a fine would be disproportionate, particularly in light of the recent case law of the Court of Justice of the European Union, which holds that "only violations of the provisions of this regulation committed faultily by the data controller, namely those committed deliberately or negligently, can lead to the imposition of an administrative fine on the latter under this article."⁸⁴

213. The Litigation Chamber orders the defendant, pursuant to Article 100, 9° of the LCA, to bring the processing of personal data into compliance with the provisions of the GDPR:

- a. the defendant is summoned to duly and promptly respond to the complainant's request for deletion in accordance with Article 17 of the GDPR (Article 58.2.b of the GDPR and Article 100, § 1, 6°, LCA);
- b. the defendant is reprimanded for not providing transparent information to the complainant and for not sufficiently facilitating the exercise of the complainant's rights, which is contrary to Articles 12.1 to 12.4 inclusive of the GDPR as well as Article 13 of the GDPR (Article 58.2.b of the GDPR and Article

100, § 1, 5° of the LCA);

c. it is recommended that the defendant cease the processing of personal data of individuals who have left the Church in its current form in accordance with Article 21.1 of the GDPR (Article 59.2.b of the GDPR and Article 100, § 1, 8° of the LCA).

214. These compliance measures must be carried out within a period of 30 days.

215. Furthermore, the defendant is summoned, pursuant to Article 100, § 1, 10° of the LCA, to inform all joint controllers of the processing of this decision and the aforementioned order and to emphasize that the current legal bases for the processing are not compliant with the GDPR.

216. Article 108 of the LCA states that, except for the exceptions provided by law or unless the Litigation Chamber decides otherwise by a specially reasoned decision, the decision is provisionally enforceable, notwithstanding appeal.

84 CJEU, Judgment of December 5, 2023, Nacionalinis visuomenės sveikatos centras, C-683/21, ECLI:EU:C:2023:949, para 73. See also CJEU, Judgment of December 5, 2023, Deutsche Wohnen, C-807/21, ECLI:EU:C:2023:950.

Decision on the merits 169/2023 — 60/60

Pursuant to Article 108, § 1 of the LCA, this decision may be appealed to the Market Court (Court of Appeal of Brussels) within thirty days from its notification, with the Data Protection Authority as the defendant. Such an appeal may be initiated by means of a contradictory application which must include the details listed in Article 1034ter of the Judicial Code. The contradictory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit IT system of the Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Litigation Chamber

The application must contain, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their capacity and national register number or business number;

3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief statement of the grounds for the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

"The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry."